Distance Learning Centre

Ahmadu Bello University
Zaria, Nigeria

LIBS 888:
Legal Issues in Information Management

Course Material

Programme: Masters in Information Management

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Course Study Guide

Course Information

Course Code:LIBS 866
Course Title: Legal Issues in Information Management
Credit Units: 3
Semester: Two

PREAMBLE

You are welcome to LIBS 866, **Legal Issues in Information Management**. In this course, we will explore some legal concepts and problems in applying law to cyberspace in the areas such as cybercrime, **cyber jurisdiction**, liability for statement, intellectual property, privacy, freedom of information and press and access to information among others. I expect you to compare what you have studied here with what is obtainable in other academic institutions and feel free to contact me where necessary for possible input.

INTRODUCTION

i. COURSE INTRODUCTION AND DESCRIPTION

From the title of the course, students should expect that we would be examining specific problems in applying law to **cyberspace**, cybercrimes, bounds of jurisdiction, intellectual property, **freedom and access** to information. We shall be giving emphasis to understanding and application of the basic **legal issues**. This course is about exposing students to **legal issues** in information management. At

the end of the course, you will appreciate the basic legal principles applicable to **cyberspace**, cybercrimes, cyber jurisdiction, liability for statement and defence, intellectual property, freedom of expression and press, access to information and exemptions to such access.

ii. COURSE PREREQUISITES

Students should note that although this course has no subject pre-requisite, you are expected to have:

1. Satisfactory level of English proficiency
2. Basic Computer Operations proficiency
3. Online interaction proficiency
4. Web 2.0 and Social media interactive skills

iii. COURSE LEARNING RESOURCES

There are no compulsory textbook(s) for the course. However, you should consult the books listed in the references and more. The note in this course is taken from the reference materials.

iv. COURSE OUTCOMES

At the end of this course, students will be able to explain

1. Basic concepts and legal issues associated with cyberspace, cyber jurisdiction, cybercrime and liability for statements.
2. Intellectual property, objectives, justification, theories and overview of legal and statutory framework for intellectual property rights in Nigeria.
3. Explain fundamental rights, right to freedom of expression and press as well as list and discuss international, regional and municipal legal instrument for access to information and exemptions thereto.
4. Review case laws in connection to the legal concepts studied.

v. ACTIVITIES TO MEET COURSE OBJECTIVES

Specifically, this course shall comprise of the following activities:

1. Studying courseware
2. Listening to course audios
3. Watching relevant course videos
4. Field activities, industrial attachment or internship, laboratory or studio work (whichever is applicable)
5. Course assignments (individual and group)

6. Forum discussion participation
7. Tutorials (optional)
8. Semester examinations (CBT and essay based).

These objectives will be achieved through presentations, discussions and group works which will be assessed through tests and evaluation of your performance with respect to presentations, discussions and written work.
Once again, let me stress that this course is aimed at broadening your understanding of the legal concepts and issues in information management and to allow you to gain experience in applying the knowledge acquired to real life practice.

Individual and group assignments will provide the basis for much of the work in the class. It is also expected that that you study each question and prepare for the assignments. Topical discussion will form part of your assessments. Your participation on the class works will be assessed by what you contribute. Topics shall be assigned to groups for discussion and assessment.

vi. TIME (TO COMPLETE SYLABUS/COURSE)

To cope with this course, you would be expected to commit a minimum of 3 hours Weekly for the Course.

vii. GRADING CRITERIA AND SCALE

Grading Criteria

A. Formative assessment

Grades will be based on the following:

Individual assignments/test (CA 1,2 etc)	20
Group assignments (GCA 1, 2 etc)	10
Discussions/Quizzes/Out of class engagements etc	10

B. Summative assessment (Semester examination)

CBT based	30
Essay based	30

TOTAL 100%

C. Grading Scale:

A = 70-100
B = 60 – 69
C = 50 - 59
F = 45-0

Feedback

Courseware based:

1. In-text questions and answers (answers preceding references)
2. Self-assessment questions and answers (answers preceding references)

Tutor based:

1. Discussion Forum tutor input
2. Graded Continuous assessments

Student based:

1. Online programme assessment (administration, learning resource, deployment, and assessment).

viii. LINKS TO OPEN EDUCATION RESOURCES

OSS Watch provides tips for selecting open source, or for procuring free or open software.

SchoolForge and SourceForge are good places to find, create, and publish open software. SourceForge, for one, has millions of downloads each day.

Open Source Education Foundation and Open Source Initiative, and other organisation like these, help disseminate knowledge.

Creative Commons has a number of open projects from Khan Academy to Curriki where teachers and parents can find educational materials for children or learn about Creative Commons licenses. Also, they recently launched the School of Open that offers courses on the meaning, application, and impact of "openness."

Numerous open or open educational resource databases and search engines exist. Some examples include:

- OEDb: over 10,000 free courses from universities as well as reviews of colleges and rankings of college degree programmes
- Open Tapestry: over 100,000 open licensed online learning resources for an academic and general audience
- OER Commons: over 40,000 open educational resources from elementary school through to higher education; many of the elementary, middle, and high school resources are aligned to the Common Core State Standards
- Open Content: a blog, definition, and game of open source as well as a friendly search engine for open educational resources from MIT, Stanford, and other universities with subject and description listings
- Academic Earth: over 1,500 video lectures from MIT, Stanford, Berkeley, Harvard, Princeton, and Yale
- JISC: Joint Information Systems Committee works on behalf of UK higher education and is involved in many open resources and open projects including digitising British newspapers from 1620-1900!

Other sources for open education resources

Universities

- The University of Cambridge's guide on Open Educational Resources for Teacher Education (ORBIT)
- OpenLearn from Open University in the UK

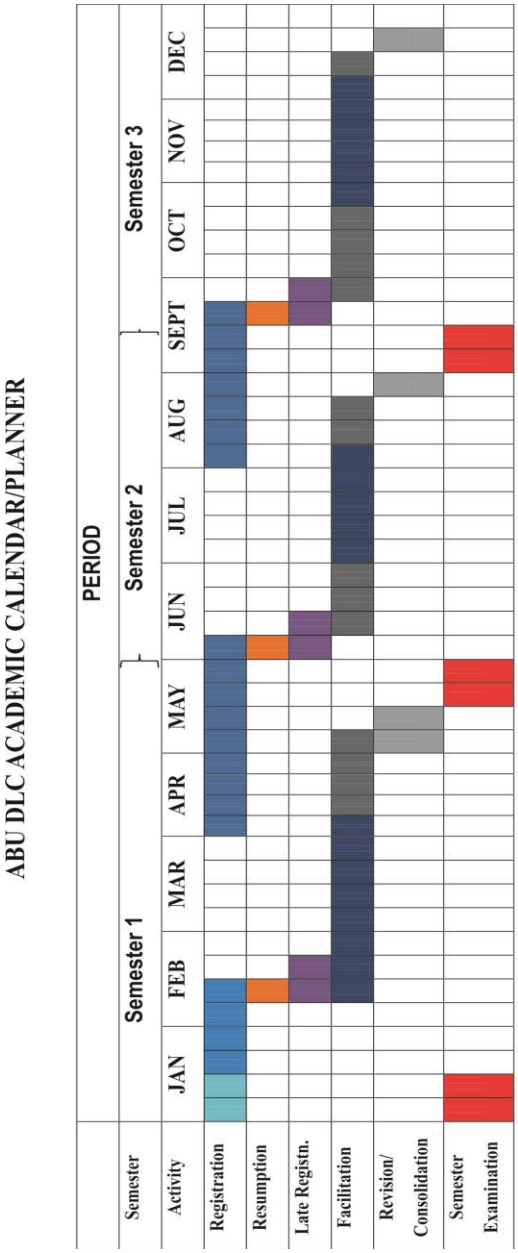
Global

- Unesco's searchable open database is a portal to worldwide courses and research initiatives
- African Virtual University (http://oer.avu.org/) has numerous modules on subjects in English, French, and Portuguese
- https://code.google.com/p/course-builder/ is Google's open source software that is designed to let anyone create online education courses
- Global Voices (http://globalvoicesonline.org/) is an international community of bloggers who report on blogs and citizen media from around the world, including on open source and open educational resources

Individuals (which include OERs)

- Librarian Chick: everything from books to quizzes and videos here, includes directories on open source and open educational resources
- K-12 Tech Tools: OERs, from art to special education

- Web 2.0: Cool Tools for Schools: audio and video tools
- Web 2.0 Guru: animation and various collections of free open source software
- Livebinders: search, create, or organise digital information binders by age, grade, or subject (why re-invent the wheel?)



N.B: - Semester Examinations 1st/2nd Week January

- All Sessions commence Mid-February
- 1 Week break between Semesters and 4 Weeks vocation at end of session.
- Semester 3 is OPTIONAL (Fast-tracking, making up carry-overs & deferments)

x. COURSE STRUCTURE AND OUTLINE

Course Structure

WEEK	MODULE	STUDY SESSION	ACTIVITY
Week 1	**STUDY MODULE 1 Concepts of Cyberspace, Cybercrime, Cyber Jurisdiction and Liability for Statements**	**Study Session 1** Concepts of Cyberspace and Cyber Jurisdiction **Pp. 23**	1. Read Courseware for the corresponding Study Session. 2. View the Video(s) on this Study Session 3. Listen to the Audio on this Study Session 4. View any other Video/U-tube (address/site https://bit.ly/2Wy3FdB , https://bit.ly/2JNrHvj) 5. View referred Animation (Address/Site 6. https://bit.ly/2SuhhCl& https://bit.ly/32LxbNc)
Week 2		**Study Session 2** Cyber and Computer Crimes **Pp. 36**	1. Read Courseware for the corresponding Study Session. 2. View the Video(s) on this Study Session 3. Listen to the Audio on this Study Session 4. View any other Video/U-tube (address/site https://bit.ly/2wwULi5) 5. View referred Animation (Address/Site https://bit.ly/2JIFXUM& https://bit.ly/2E8O4Wq)
Week 3		**Study Session 3** Torts Related to Electronic Information **Pp. 60**	1. Read Courseware for the corresponding Study Session. 2. View the Video(s) on this Study Session 3. Listen to the Audio on this Study Session 4. View any other Video/U-tube (address/site https://bit.ly/2Wyhclz) 5. View referred Animation (Address/Site https://bit.ly/2Y64A1B)
Week 4		**Study Session 4** Liability for Statements, Defamation and Defences	1. Read Courseware for the corresponding Study Session. 2. View the Video(s) on this Study Session 3. Listen to the Audio on this Study Session

		Pp. 70	4. View any other Video/U-tube (address/site https://bit.ly/2QBWewT) 5. View referred Animation (Address/Site https://bit.ly/2QBWewT 7 https://bit.ly/2JXq0ZR)
Week 5	**STUDY MODULE 2 Definitions, Objectives and Theories of Intellectual Property**	**Study Session5** Review of Case Laws **Pp. 77**	1. Read Courseware for the corresponding Study Session. 2. View the Video(s) on this Study Session 3. Listen to the Audio on this Study Session
Week 6		**Study Session 1** Definitions, Objectives, Justification and Theories of Intellectual Property **Pp. 79**	1. Read Courseware for the corresponding Study Session. 2. View the Video(s) on this Study Session 3. Listen to the Audio on this Study Session 4. View any other Video/U-tube (address/site https://bit.ly/2JNZqEZ) 5. View referred Animation (Address/Site https://bit.ly/2JnEpR7&https://bit.ly/2M7p1Js& https://bit.ly/2MaKmBP)
Week 7		**Study Session 2** Overview of Statutory and Institutional Framework for IPR in Nigeria **Pp. 87**	1. Read Courseware for the corresponding Study Session. 2. View the Video(s) on this Study Session 3. Listen to the Audio on this Study Session 4. View any other Video/U-tube (address/site https://bit.ly/2wv05mb , https://bit.ly/2HN91JS) 5. View referred Animation (Address/Site https://bit.ly/2XXChYi& https://bit.ly/2LCcA8M)

Week 8		**Study Session 3** Emerging Development, International Responses and Basic Principles of Copyrights **Pp. 92**	1. Read Courseware for the corresponding Study Session. 2. View the Video(s) on this Study Session 3. Listen to the Audio on this Study Session 4. View any other Video/U-tube (address/site https://bit.ly/2XjF5uj) 5. View referred Animation (Address/Site https://bit.ly/30Q0nBe& https://bit.ly/2YgWA25)
Week 9	**STUDY MODULE 3 Fundamental Rights, Freedom of Expression and Access to Information**	**Study Session 4** Review of Case Laws **Pp. 105**	1. Read Courseware for the corresponding Study Session. 2. View the Video(s) on this Study Session 3. Listen to the Audio on this Study Session
Week 10		**Study Session 1** Fundamental Rights and Right to Freedom of Expression **Pp. 106**	1. Read Courseware for the corresponding Study Session. 2. View the Video(s) on this Study Session 3. Listen to the Audio on this Study Session 4. View any other Video/U-tube (address/site https://bit.ly/2Id6FD5) 5. View referred Animation (Address/Site https://bit.ly/2HlwqP8&https://bit.ly/2YisCuK& https://bit.ly/2lyJyL8& https://bit.ly/2y4AIrW)
Week 11		**Study Session 2** History, Definition and Nature of Freedom of Information **Pp. 115**	1. Read Courseware for the corresponding Study Session. 2. View the Video(s) on this Study Session 3. Listen to the Audio on this Study Session 4. View any other Video/U-tube (address/site https://bit.ly/2wuqQqz , https://bit.ly/2EYiWe3) 5. View referred Animation (Address/Site https://bit.ly/2YbUqMV&https://bit.ly/30Isn9M& https://bit.ly/2Z7aYqG)

Week 12		**Study Session 3** Exemptions under the Freedom of Information Act **Pp. 124**	1. Read Courseware for the corresponding Study Session. 2. View the Video(s) on this Study Session 3. Listen to the Audio on this Study Session 4. View any other Video/U-tube (address/site https://bit.ly/2EOXY0V , https://bit.ly/2IoTyiv) 5. View referred Animation (Address/Site https://bit.ly/2Z531m4&https://bit.ly/2JWbaTt& https://bit.ly/2JKuHYk)
		Study Session 4 Review of Case Law **Pp. 132**	1. Read Courseware for the corresponding Study Session. 2. View the Video(s) on this Study Session 3. Listen to the Audio on this Study Session
Week 13		**REVISION/TUTORIALS**	
Week 14 & 15		**SEMESTER EXAMINATION**	

Course Outline

MODULE 1: Concepts of Cyberspace and Cyber Jurisdiction, Cyber and Computer Crimes, Torts Related to electronic Information and Liability for Statements

Study Session 1: Concepts of Cyberspace and Cyber Jurisdiction
Study Session 2: Cyber and Computer Crimes
Study Session 3: Torts Related to Electronic Information
Study Session 4: Liability for Statements, Defamation and Defences
Study Session 5: Review of Case Laws

MODULE 2: Definitions, Objectives and Theories of Intellectual Property

Study Session 1: Definition, Objectives, Justification and Theories of Intellectual Property.
Study Session 2: Overview of Statutory and Institutional Framework for IPR in Nigeria
Study Session 3: Emerging Development, International Responses and Basic Principles of Copyrights
Study Session 4: Review of Case Laws

MODULE 3: Fundamental Rights, Freedom of Expression and Access to Information

Study Session 1:Fundamental Rights and Right to Freedom of Expression
Study Session 2: History, Definition and Nature of Freedom of Information
Study Session 3: Exemptions under the Freedom of Information Act
Study Session 4: Review of Case Laws

Study Modules

MODULE 1: Concepts of Cyberspace and Cyber Jurisdiction, Cyber and Computer Crimes, Torts Related to electronic Information and Liability for Statements.

Contents:

Study Session 1: Concepts of Cyberspace and Cyber Jurisdiction
Study Session 2: Cyber and Computer Crimes
Study Session 3: Torts Related to Electronic Information
Study Session 4: Liability for Statements, Defamation and Defences
Study Session 5: Review of Case Laws

Study Session 1

Concepts of Cyberspace and Cyber Jurisdiction

Section and Subsection headings:

Introduction
1.0 Learning Outcomes
2.0 Main Content
    2.1- The Concept of Cyberspace
    2.2- The Difference between Real Space and Cyberspace
    2.3- Cyber Jurisdiction
    2.4- Jurisdiction and Cyberspace
3.0Study Session Conclusion/Summary
4.0 Self-Assessment Questions
5.0 Additional Activities (Videos, Animations & Out of Class activities)
6.0References/Further Reading

Introduction

Legal issues are the foundation of a case which requires court decision. We refer to them as points on which evidence are undisputed, the outcomes of which depend on court's interpretation of the law. In this module you will learn about the general

meaning and definition of concepts of **cyberspace, cybercrime**, **cyber jurisdiction**, liability for statements, defamation and defences.

1.0 Study Session Learning Outcome

After studying this session, I expect you to be able to:

1. Explain the Concepts of Cyberspace and Cyber Jurisdiction.
2. Differentiate between Real and Cyberspace

2.0 Main Content

2.1 The Concept of Cyberspace

Cyberspace is such a term, which is not yet completely defined and also has no **geographical limitation**. It is a term associated with application of the Internet—worldwide. It is also called a virtual space because physical existence of cyberspace is not detectable at all. Cyberspace is "**the total interconnectedness of human beings through computers and telecommunication without regard to physical geography**."

Cyberspace is a term coined by science fiction author William Gibson to describe the whole range of information resources available through computer networks. For our purposes, we will see **cyberspace** as a realm in which communication and interaction between two individuals or between an individual and a computer is facilitated by digital data exchanged over computer networks. This interaction or communication can be used for a host of different purposes.

The Internet is currently the biggest network for linking computers, but **cyberspace**, as a concept, is independent of the Internet. **Cyberspace** communication began before the Internet and the World Wide Web, and cyberspace interaction and communication will continue to take place after the Internet is no longer the network of choice.

By the 1990s, the term "**Cyberspace**" became a ***defacto*** name for internet and later the World Wide Web particularly among the academic circles. It is, to borrow from the words of John Ferry Bantow, "**the present day nexus of computers and telecommunications networks**." In current usage, the term **cyberspace** stands for the global network of interdependent information technology, infrastructures, telecommunication networks and computer processing system. And as a social experience, individuals can interact, exchange ideas, share information, provide social support, conduct business, direct action, engage in political discussion and so on using global network. The term became a conventional means to describe anything associated with internet and the diverse internet culture.

Thus, the core characteristic of **cyberspace** is that it offers an environment that consists of many participants with the ability to affect and influence each other. Writing on **cyberspace**, Lawrence noted that:

Cyberspace is not a place. It is many places. The characters of these many places are not identical. They instead differ in ways that are fundamental. These differences come in part from differences in the people who populate these places.

Cyberspacehas changed in part because the people using it have changed, and in part because the capacities provided by the space have changed. At the start of the internet, communication was through text, media such as USENET Newsgroup, internet Relay chart and e-mail all confined exchange to text to words on a screen, typed by a person.

The above statement by Lawrence underscores the transformation of **cyberspace** to an ultimate transnational communications network, offering unrivalled capability to access data and computer systems on a global level. Nonetheless, **cyberspace** provides a unique source of vulnerability for the nation state, whether from political dissent, economic liberalism or cyber terrorism.

Community in cyberspace is based on the interaction between people. **Cyberspace** has an important social aspect to it that must not be overlooked. Ever since the **ARPA** Net was created, its primary use has been to communicate with other people. With the advent of a faster backbone, different types of communication media became possible namely, interactive communications.

Although a community is a group of people who interact with each other, at the basic level it comprises a group of people who exist with each other in a common plane. **Cyberspace** can be treated as a conduit touching portion of real space at key points. Ideas are passed through the conduit, and business is transacted through this conduit. The **cyberspace** communities are members of the global community interacting on a different plane than in real space. These members rarely interact in the real space, but they communicate through multimedia means in **cyberspace** whether it be by text, image, sound, or a combination of the three. It is not possible to use the Internet without being part of this community of people; you cannot avoid being a part of the community, even if you are using the Internet as a conduit: by e-mailing people, reading web pages, reading newsgroups, or doing commerce online, one has joined the **cyberspace** community.

Currently there is no generic system for identification in **cyberspace**. It is not possible to absolutely identify in entirety or to accurately tell whether an object has a specific characteristic. Digital environments have inherent differences from real space which causes this discrepancy, and when implementing an identity system for **cyberspace** we need to consider more than just the architectural nature of the system. Any system chosen will have the social repercussions which need to be also taken into account. Identity is a unique piece of information associated with an entity. Identity itself is simply a collection of characteristics which are either inherent or are assigned by another. The colour of a person's hair is good or bad and whether he is attractive or not is part of a person's identity which is usually reviewed by another person.

Interactions done in real space inherently carry the identity of the person originating the transaction. Generally, physical traits are carried along in a transaction - for example when you purchase a book from a book store, the book dealer may remember your face or build.

In-text Question
What do you understand by the word Cyberspace

Answer
Cyberspace is "the total interconnectedness of human beings through computers and telecommunication without regard to physical geography.

2.2 The Difference between Real Space and Cyberspace

The difference between real space and **cyberspace** is that the essence of any digital transaction is unbundling. Ones and zeros do not inherently carry any separate information along with them; a real space transaction carries along inseparable secondary information. Digital transmissions can only transmit; there is no secondary information encoded in the transmission unless explicitly put there. Thus, for authentication purposes, additional information needs to be carried with cyberspace transactions for identity purposes.

Providing extra information in digital communication introduces the possibility for identity theft because nothing prevents the transmission of false identity information, or the duplication of another's identity information. To prevent these problems, the actual identity must not be transmitted along with the message; instead a verification scheme needs to be used to convince the recipient that the message was actually sent by the sender. This eliminates the need to send your actual identity. The concept of verifying instead of revealing provides an extra layer of security to the sender.

2.3 Cyber Jurisdiction

Today internet has revolutionised its reach is far more than any other of communication. But with this novelty also comes great risks where this boon called the internet can also be misused and hence giving rise to many criminal activities and instances of abetment of criminal activities which have to be regulated. The basic nature of the internet is that it is endless and has no boundaries. This is a primary characteristic of the internet and poses as a severe problem when ones peaks of the issue **of jurisdictions**.

Jurisdiction is the concept whereby in any legal system ,the power to hear or determine a case is vested with the appropriate court. The main problem of **cyber law jurisdiction** is the presence of multiple parties in various parts of the world who have only virtual nexus with each other. Then the problem of place is raised like where the party wants to sue

and what remedy is available to him?

Issues of **jurisdiction and sovereignty** have quickly come to the fore in the era of the Internet. The Internet does not tend to make geographical and **jurisdictional** boundaries clear, but Internet users remain in physical **jurisdictions** and are subject to laws independent of their presence on the Internet. As such, a single transaction may involve the laws of at least three jurisdictions:

1. The laws of the state/nation in which the user resides,
2. The laws of the state/nation that apply where the server hosting the transaction is located, and
3. The laws of the state/nation which apply to the person or business with whom the transaction takes place. So a user in one of the states in USA conducting a transaction with another user in Australia through a server in Chennai could theoretically be subject to the laws of all three countries as they relate to the transaction at hand.

Jurisdiction is an aspect of state sovereignty and it refers to **judicial, legislative** and administrative competence.StatesovereigntyasdefinedbytheMerriam-Websterdictionary as "**a country's independent authority and the right to govern itself**". Although **jurisdiction** is an aspect of sovereignty, it is not coextensive with it. Just because a country has its sovereignty (**both internal and external**) intact does not mean it has unlimited **jurisdiction** over all sorts of issues. International law limits a state's right to exercise **jurisdiction**.

The internet today is making a complete mockery of the law not just the traditional laws but even the so-called modern laws. The very basis of any justice delivery system, the **jurisdiction,** which gives powers to a particular court to accommodate a particular case, is itself being threatened over the internet; leave alone the other traditional laws.

2.4Jurisdiction and Cyberspace

Traditionally where the cause of action arises is where the **jurisdiction** lies, but how to determine when there are multiple parties involved in varied part s of the world. There are three parties to a transaction that takes place in **cyberspace** namely, user, service provider and person/business with whom the transaction

takes place therefore ideally the most efficient law must address whether a particular event in **cyberspace** is controlled by the laws of the stateorcountryorwheretheuserislocatedorapplicationofalltheothercountries'orstates' laws.

in-text Question
Define cyber law jurisdiction

Answer
Cyber law jurisdiction is the presence of multiple parties in various parts of the world who have only virtual nexus with each other.

Like I said before: unlike in the conventional way, there are three parties to any transaction carried out in the **cyberspace**. The User, the server Host and with whom the transaction is taking place with. The primary issue is, which country's law should apply? Hence, the key issues that can be identified are:

1. When there is cross border interactions, on what basis do we decide which country's law applies and which court has **jurisdiction**?
2. What are the basis on which a nation can claim to apply laws and regulations if the internet activity originates from different **jurisdiction**.

Therefore, matters of jurisdiction is a subject of state and International law when the contracting parties or parties in dispute are of different nationals. Under international law the state is subjected to application of its law when there are international parties to dispute.

There three kinds of **jurisdiction** that exists in matters of determining a country's **jurisdiction** under international law. These are, prescriptive **jurisdiction,** jurisdiction to adjudicate, **jurisdiction** to enforce.

a) **Prescriptive jurisdiction**
   It is the **jurisdiction** of the state to make laws applicable to a person and certain circumstances; however international laws exercise limitation on states' authorities to prescribe laws if there is a conflict of interest with another state.
b) **Jurisdiction to Adjudicate**

It is the power of the state to subject a person or things to court s or administrative tribunals either civil or criminal, whether or not the state is party to the proceedings, if there exists sufficient relationship between the state and the person.

c) **Jurisdictionto Enforce**
This is the power of state to induce or punish for non compliance with laws and regulations. However, a state's law can been forced by the officers with due permission of the state officials concerned. From arrest to producing documents and police arrest cannot be conducted without consent. (**The highlighted sentence is not clear**) However there may be circumstances where the state may have **jurisdiction** to prescribe but **jurisdiction** to adjudicate is absent. In criminal cases especially **jurisdiction** to adjudicate does not exists without **jurisdiction** to adjudicate because courts do not apply criminal laws of other states.

Personal **jurisdiction is jurisdiction** over the persons or entities involved in the law suit. One way to think about personal **jurisdiction** is to ask the following question: "What right does a court have to determine the rights of the parties involved in the action?"In other words, the question of whether a court has personal **jurisdiction** over a person involves the question as to whether it would be fair for the court to issue a judgment against that person. The element that must be satisfied for a court to have personal **jurisdiction** is the law that governs the court must give it authority to assert **jurisdiction** over the parties to the case.

Yahoo Inc. *vs* LaliguecontreLeRacism EL, Antisemitisme, popularly known as the "**Yahoo!Case**" which highlights the **jurisdictional** issues in **cyberspace** is another landmark issue in this subject. The facts of the case were on the lines that the union of French students and International League against Racism and Anti-Semitism filed a suit against yahoo for hosting auctions that displayed and sold Nazi propaganda. Yahoo argued that the French court did not have **jurisdiction**. However, this was denied and Yahoo! did not go for an appeal rather it challenged the enforcement of the order in United States. In meantime the French courts claimed for dismissal of declaratory judgement, while the U.S court however ruled that **jurisdiction** existed based on the Effect Theory. The effects theory is in simple words, A doctrine, developed mainly by the American courts in anti-trust cases, asserting **jurisdiction** overacts of foreign nationals committed abroad but having effects in the American marketplace; an extended form of the objective

territorial principle.

A state can only enforce laws in a forum where the defendant can be found or where assets of the defendant belonging to him can be found. Enforcement of judgement rendered by another court requires recognition by another court to enforce it. In the United States a Principle of Comity is followed. Comity is the recognition which one nation allows within its territory to the legislative, judicial and executive acts of the other state. However, procedures may vary widely across the globe. The principle of comity is followed unless there is a violation of due process, personal **jurisdiction** and public policy. In simpler words, the principle that one sovereign nation voluntarily adopts or enforces the laws of another sovereign nation out of deference, mutuality, and respect is what the Principle of Comity is.

The 1968 Brussels Convention permits assertion of **jurisdiction** if the plaintiff suffers from tort injury within the forum. It has been suggested that an impartial body that acts as a dispute resolution body to deal with the cyberspace disputes that take place between people from different countries; all domestic cyber disputes should be tackled by the domestic courts of the various countries in accordance with their own laws; and an international monitoring or regulatory body with some binding authority may be assigned the task of analysing, etc. Rules of **cyber jurisdiction**should be made that has binding control over the countries.

On a concluding note, the internet is big, vast, complex and here to stay. Our traditional methods of legal systems have miserably failed in front of technology. Instead of altering our current systems and trying to find a method that is new, innovative and a kind where all have to compromise a little so that the compromise can be used for a greater good of justice and equity. (This sentence is a bit confusing and inconclusive).

In-text Question
what are the three kinds of jurisdiction

Answer
1 Prescriptive jurisdiction
2 Jurisdiction to Adjudicate
3 Jurisdiction to Enforce

3.0 Study Session Conclusion/Summary

In this session, I have tried to make it clear to you that there is no proper definition of **Cyberspace** yet; only some concepts have been derived. **Cyberspace** is the total interconnection of human beings through networked computers and telecommunications without any regard to physical geography. The difference between real space and **cyberspace** is that the essence of any digital transaction is unbundling. Main problems are to identify the reality.

4.0 Self-Assessment Questions

1. What is Cyberspace?
2. Explain the concepts of **cyberspace** and **cyber jurisdiction**
3. Distinguish between cyberspace and real space
4. **Cyberspace** is a term associated with application of the Internet world-wide. It is also called a virtual space because physical existence of **cyberspace** is not detectable at all. **Cyberspace** is "the total interconnectedness of human beings through computers and telecommunication without regard to physical geography."

5.0 Additional Activities (Videos, Animations &Out of Class activities) e.g.

a. Visit U-tube addhttps://bit.ly/2Wy3FdB, https://bit.ly/2JNrHvj. Watch the video & summarise in 1 paragraph

b. View the animation on add/site https://bit.ly/2SuhhCl& https://bit.ly/32LxbNc and critique it in the discussion forum

6.0 References/Further Readings

Bryant, R. (2001) *What Kind of Space is Cyberspace?*Minerva – An Internet Journal of Philosophy, ISSN 1393-614X.

Lawrence, L. (1999). *Code and other Laws of Cyberspace.* Basic Books, NewYork, U.S.A.

Moore, E. S. "Cyber Jurisdiction." euro.ecom.cmu.edu/program/law/…/pdf

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Study Session 2

Cyber and Computer Crimes

Section and Subsection headings:

Introduction
1.0 Learning Outcomes
2.0 Main Content
    2.1- Cyber and Computer Crimes
    2.2- Nature of Cybercrime
    2.3- Cybercrimes (Prohibition, Prevention, etc) Act, 2015
3.0 Study Session Conclusion/Summary
4.0 Self-Assessment Questions
5.0 Additional Activities (Videos, Animations &Out of Class activities)
6.0 References/Further Readings

Introduction

You are welcome to this study session. This session examines the offences of **cyber and computer crimes** as well as takes an overview of the **Cybercrimes** Act, 2015.

Because this course is a technical one which has to do with the citation and interpretation of legal provisions, there may be very little room for interaction and examples. For that, I beg you to be more attentive in order not to lose interest.

1.0 Learning Outcomes

After studying this session, I expect you to be able to:

1. Define cyber and computer crimes/
2. Make an overview of the offences under the Cybercrimes Act, 2015.

2.0 Main Content

2.1Cyber and Computer Crimes

Computer crimes can involve criminal activities that are traditional in nature, such as theft, fraud, forgery and mischief, all of which are subject everywhere to criminal sanctions. The term "**computer misuse and abuse**" are also used

frequently but they have significantly different implications. Annoying behaviour must be distinguished from criminal behaviour in Law. As per **Cybercrimes** Act, 2015,no definition has been made for computer crime and **cybercrime**. So till today, it is very difficult to differentiate between these two words. In relation to the issue of intent, the principle of claim of right also informs the determinations of **criminal behaviour**. For example, an employee who has received a password from an employer, without direction as to whether a particular database can be accessed, is unlikely to be considered guilty of a **crime** if he or she accesses those databases.

So a distinction must be made between what is unethical and what is illegal, the **legal** response to the problems must be proportional to the activity that is alleged. But**cybercrimes** are somehow different from computer crimes. **Computer crime** happens in physical space with or without the network. **Cybercrime** takes place in a virtual space through digital environment.

Fig 1.2.1: Cyber and Computer Crimes

Cybercrimes may happen globally as there is no geographical limit for **cyberspace**.

You will agree with me that **crimes** can be easily planned and carried out on a system with no accountability, and there is no reason to think that they would not be. However, practical concerns such as sovereignty and providing unrestricted speech to political
dissidents regardless of their governments' policy on free speech may outweigh the potential societal costs. It may be also that suitable mechanisms for regulating their identity can be created in a legal or market based way; it is hard to see how these methods would be enforceable in a cost-effective manner, but the number of **criminal** deviants might be small enough that the identification by law enforcement could be reasonably achieved.

Defining the concept of **cybercrimes** is not an easy task. **Cybercrimes** are broad

construct for many emerging sorts of abuse and **crimes** enabled by Information and Communication Technologies (ICT). **Cybercrimes** embrace harmful behaviour that takes place via **cyberspace** and that transcend geographical **jurisdiction**, confusing tradition law enforcement investigation methods. The primary problem for analysis of **cybercrimes** is the lack of consistent and statutory definition for the activities that may constitute **cybercrimes**. According to Smith *et al*, "defining **cybercrime** raises conceptual complexities. Varied definitions do exist. In addition to the difficulty of definition, it is also called by variety of terms such as computer crime, computer related crime, digital crime, IT crime, internet crime, virtual crime, **e-crime,** etc. **Cybercrimes** can include a variety of **criminal** offences and activities."

As experiences and technology have developed so have the definition of **computer crimes** or **cybercrimes**. Historically, a search for a definition must emphasise the knowledge or the use of computer technology. In the first presentation on computer **crime, computer** related crime was defined in the broader meaning as: "any illegal act for which knowledge of computer is essential for its successful prosecution."

The 10th United Nations (UN) Congress on the Prevention of Crime and Treatment of Offenders, grouped cybercrimes into two categories as:

i. In a narrow sense, as any illegal behaviour directed by means of electronic operation that target the security of computer systems and data processed by them; and

ii. In a broader sense, as any illegal behaviour committed by means of or its relation to a computer system or network including such crimes as illegal possessions and offering or distributing information by means of a computer system or network.

In a study on the international legal aspects of computer crime, computer crime was defined asone which "encompasses any **illegal** act for which knowledge of computer technology is essential for its perpetration."

The Council of Europe Recommendations of 1987 adopted a functional approach, and computer related **crime**was described as "the offences enumerated and defined in the proposed guidelines or recommendation for national legislators." In the Council of Europe Recommendations of 1995 on Criminal Procedural Law, the

term "offences connected with Information Technology" IT offences or IT crimes are described as "encompassing any criminal offence, in the investigation of which investigating authorities must obtain access to information being processed or transmitted in computer systems, or electronic data processing systems.

In-text Question
What is Cybercrimes

Answer
Cybercrimes are broad construct for many emerging sorts of abuse and crimes enabled by Information and Communication Technologies (ICT).

The Organisation for European Cooperation and Development (OECD) recommendations of 1986 included a working definition as a basis for the study, that: "**Computer-related crime** is considered as any illegal, unethical or unauthorised behaviour relating to automatic processing and the transmission of data." According to Tokura, the OECD definition is vague because of the inclusion of the word "**unethical**" which could also mean the same as "conduct" which covers both acts and omission in cases in which a man is able to show that his conduct, whether in the form of action or inaction was involuntary, he must not be held liable for any harmful result produced by it.

In the proposal for an International Convention on Cybercrimes and Terrorism by the Stanford University, **Cybercrimes**was defined as: "conduct with respect to **cyber systems** that is classified as an offence punishable by this convention." A cyber system according to the proposal is "any computer and network of computers used to relay, transmit, co-ordinate, or control communications or data or programs."

The proposal for a European Union Council Framework Decision on Attacks Against Information Systems of April 19, 2002, by the European Commission includes a functional definition of cybercrimes as "including attacks against information systems as defined in this framework decision." The Council of Europe Convention on **Cybercrimes** of 2001,defines cybercrimes as:

i. offences against the confidentiality, integrity and availability of computer data and systems;
ii. computer related offences;

iii. content related offences;
iv. offences related to infringements of copyrights and related rights.

2.2Nature of Cybercrime

Cybercrime is by its very nature not restricted to physical borders. Cyber criminals can operate from anywhere in the world, targeting large number of people or businesses across international boundaries. Anonymity is an obvious advantage to the **cyber-criminal**. They may deliberately conceal their identity online by the use of proxy servers, spoofed e-mail or internet protocol (IP) or anonymous e-mail. The nature of modern communication in itself means that data can be routed through a number of **jurisdictions** before reaching its destination, making tracing of communication extremely difficult and time sensitive. Accessing wireless network, with or without authorisation may conceal the identity of the actual user even if the location can be identified. Data may be stored deliberately in **jurisdictions** where regulations and oversight is lax.

Fig 1.2.2: Nature of Cybercrime

A few decades ago, computers were large, cumbersome devices utilised only by government, research and finance institutions. The ability to commit computer **crime** was largely limited to those with access and expertise. Today, the technology is increasingly easy to use, ensuring its availability to both offenders and victims. The increase in smartphones and tablets use has led to a boom in software applications or apps being downloaded; with Apple reporting that more than 25 billion apps has been downloaded from its app store.

For those **criminal** activities that may be beyond the skills of an individual, the internet provides easy access to those who will do it or tell you how. Online market places provide everything from hacking techniques and botnets to financial and identity information. Offenders, who might otherwise be isolated in their acts can

now find like-minds anywhere in the world, forming virtual communities to further their acts.

Central to the power of technology is the ability to store enormous amount of data in a small place, and replicate data with no appreciable diminution of quality. Storage and processing power which would once have occupied rooms will now fit into pockets. Copies of images or sounds may be transmitted simply and at negligible cost to potentially millions of recipients.

The convergence of computing and communication technologies has made this process a seamless one, with the ability to take digital image with a mobile phone and then upload it to a website within seconds. The estimated 3 billion people with access to internet, approximately 40% of the world's population, present an unprecedented pool of potential offenders and victims. This acts as multiplier, allowing **cybercrime** to be committed on a scale that cannot be achieved in the offline environment.

2.3Cybercrimes (Prohibition, Prevention, etc) Act, 2015

Back here in Nigeria, the **Cybercrimes** Act provide for an effective and unified legal, regulatory and institutional framework for the prohibition, prevention, detection, prosecution and punishment of **cybercrimes**, ensuring the protection of critical national information infrastructure and promoting **cyber** security and the protection of computer systems and networks, electronic communication, data and computer programme, intellectual property and privacy right.

The Act is divided into 6 parts and 59 sections. Part I provides for the object and application of the Act. Part II deals with protection of critical national information infrastructure. Part III provides for the offences and penalties, while Part IV deals with duties of financial institutions. Part V is concerned with administration and enforcement, while Part VI covers arrest, search and seizure. The Nigeria **Cybercrimes** Act provides for the following offences:

i. **Offences against Critical National Information Infrastructure**
   Section 5 of the Act provides that any person who with intent, commits any offence punishable under the Act against any critical national information infrastructure designated pursuant to section 3 of the Act shall be liable, on conviction, to imprisonment for a term of not more than 10 years with an

option of fine. Where the offence committed under subsection (1) of this section results in grievous bodily harm to any person, the offender shall be liable on conviction, to imprisonment for a term no more than 15 years without option of fine. And where the offence committed under subsection (1) results in death, the offender shall be liable on conviction, to life imprisonment.

ii. **Unlawful Access to Computer**

Any person, who without authorisation, intentionally accesses in whole or part, a computer system or network for fraudulent purpose and obtain data that is vital to national security, commits an offence and shall be liable on conviction, to imprisonment for a term of not more than 5 years or to a fine of not more than N5,000,000 or to both fine and imprisonment. Where the offence provided in subsection (1) is committed with the intent of obtaining computer data, securing access to any programme, commercial or industrial secrets or classified information, the punishment for a term of not more than 7 years or a fine of not more than N7,000,000 or to both shall be slammed on him. Where the offender uses any device to avoid detection or prevent identification, he shall be punished on conviction with a term of not more than 7 years or N7,000,000 or both. Besides, any person or organisation who knowingly and intentionally traffics in any password or similar information through which a computer may be accessed without lawful authority, if such trafficking affects public, private and/or individual interest within or outside Nigeria, shall be liable on conviction to a fine of not more than N7,000,000 or imprisonment for not more than 3 years or both (section 6 of the Act).

iii. **Electronic Fraud/Online Fraud Using Cyber Cafe**

All operators of **cyber** cafes are required to register as business concern with Computer Professionals' Registration Council as well as the Corporate Affairs Commission. **Cyber cafes** shall maintain register of users through a sign-in register which shall be available to law enforcement personnel whenever needed. Any person who perpetrates electronic fraud or online fraud using cyber cafe shall be guilty of an offence and be sentenced to 3 years imprisonment or a fine of 1 million naira or both. Where connivance by the owners of the cyber cafes is established, a fine of N2,000,000 or a 3 years jail time shall be imposed (section 7 of the Act).

iv. **System Interference**

By virtue of section 8 of the Act, any person who without lawful authority, intentionally or for fraudulent purposes does an act which causes directly or indirectly serious hindering of the functioning of a computer by imputing, transmitting, damaging, deleting, deteriorating, altering or suppressing computer data or any other form of interference with the computer system shall on conviction be imprisoned to 2 years or a fine of not more than N5,000,000 or both.

v. **Intercepting Electronic Messages/E-mails Electronic Money Transfers**

Section 9 provides that any person who unlawfully destroys or aborts any electronic mail or processes through which money or valuable information is been conveyed is guilty of an offence and is liable toimprisonment for 7 years in the first instance and upon second conviction shall be liable to 14 years imprisonment.

vi. **Tampering with Critical Infrastructures**

It is an offence under the Act for any person been employed by or under a local government of Nigeria, private organisation or financial institution with respect to working with any critical infrastructure or electronic mails to commit any act which he is not authorised to do by virtue of his contract of service or intentionally permit tampering with such computer. The punishment is N2,000,000 fine or imprisonment for 3 years (section 10 of the Act).

vii. **Wilful Misdirection of Electronic messages**

The Act punishes any person who misdirects electronic messages with either the intention to fraudulently obtain financial gain as a result of such act or with the intention of obstructing the process in order to cause delay or speeding the messages which may defeat the essence of such messages with 3 years imprisonment or a fine or N1,000,000 or both (section 11 of the Act).

viii. **Unlawful Interception**

Section 12 provides for the offence of unlawful interception committed by persons, organisation or person being employed by the authorities of Local, State and Federal Government of Nigeria or private organisation who

without authorisation intercepts by technical means or by means of false pretence induces any person in charge of electronic devices to deliver to him any electronic message which includes but is not limited to e-mail, credit and debit card, information; or intentionally hides or detains any electronic mails, messages, electronic payment, credit and debit cards which to his knowledge ought to be delivered to another person. The punishments range from not more than 2 years imprisonment or a fine of N5,000,000, one million naira and/or N250,000 depending on the offence committed under the section.

ix. **Computer Related Forgery**

It is provided under (I think something is missing here; something such as "Section * of the Act" or something like that) that any person who knowingly accesses any computer or network and inputs, alters, deletes or suppresses any data resulting in inauthentic data with the intentions that such inauthentic data will be considered or acted upon as if it were authentic or genuine, regardless of whether or not such data is directly readable or intelligible commits an offence and is liable on conviction to imprisonment for a term of not less than 3 years or to a fine of not less than N7,000,000 or both (section 13 of the Act).

x. **Computer Related Fraud**

The offence of computer related fraud is provided under section 14 of the Act. It is to the effect that any person who knowingly and without authority or in excess of authority causes any loss of property to another by altering, erasing, inputting or suppressing any data held in any computer, whether or not for the purpose of conferring any economic benefits to himself or any person, commits an offence and is liable on conviction to imprisonment for a term of not less than 3 years or fine of not less than N7,000,000.(This paragraph reads very similar to the one before it. There is need to ensure that it is not a replication).

Where a person with intent to defraud sends electronic message materially misrepresenting any fact or set of facts upon which reliance the recipient or another person is caused to suffer any damage or loss, commits an offence and on conviction shall be liable to imprisonment for a term of not less than

5 years or a fine of not less than N10,000,000 or both. Other punishments include 3 years imprisonment or N5,000,000fine or both for fraudulently franking electronic messages, instructions, super scribes any electronic message and/or instruction.

Where a person employed in public or private sector with intent to defraud, manipulates a computer or electronic payment devices with the intent to short-pay or over-pay or actually short-pays or over-pays any employee of the public or private sector, such a person is punished with not more than 7 years' term imprisonment and shall forfeit the proprietary interest in the stolen money or property to the bank, financial institution or the customer. Where any employee of a financial institution is found to have connived with another person or group of persons to perpetrate fraud using computer system, such employee shall be imprisoned for a term of not more than 7 years and shall in addition, refund the stolen money or forfeit any property to which it has been converted to the bank, financial institution or the customer.

xi. **Theft of Electronic Devices**

It is an offence under the Act for any person to steal a financial institution or public infrastructure terminal. The punishment is 3 years' imprisonment or a fine of N1,000,000 or both. Any person who steals an Automated Teller Machine (ATM) commits an offence and is liable on conviction to imprisonment for a term of not more than 7 years' imprisonment or a fine of not more than N10,000,000 or both. Attempt to steal an ATM is punishable with not more than 1-year imprisonment or a fine of not more than N1,000,000 (section 15 of the Act).

xii. **Unauthorised Modification of Computer System, Data/System interference**

It is an offence under the Act to intentionally and without lawful authority, directly or indirectly modify or cause modification of any data held in any computer system or network or does an act which causes serious hindering of the functioning of a computer system by inputting, transmitting, damaging, deleting, deteriorating, altering or suppressing computer data or any other form of interference with the computer system which prevents the computer system from functioning in accordance with its intended purpose.

The punishments thereof are 3 years' imprisonment or a fine of not more than N7,000,000 naira and 2 years' imprisonment and not more than N5,000,000 fine or both respectively (section 16 of the Act).

xiii. **Fraudulent Misrepresentation of Electronic Signature**
Any person who with intent to defraud or misrepresent, forges through electronic devices another person's signature or company's mandate commits an offence and shall be liable on conviction to not more than 7 years' imprisonment or a fine of not more than N10,000,000 or both (section 17 of the Act).

xiv. **Cyber Terrorism**
It is provided under section 18 that any person who accesses or causes to be accessed any computer or computer system or network for the purpose of terrorism, commits an offence and is liable on conviction to life imprisonment.

xv. **Financial Institutions, Posting and Authorised Options**
From the commencement of the Act, no financial institution shall give posting and authorising access to any single employee. Any person authorised to give access to computer to employees and gives more than one access to any person is guilty of an offence and is liable to payment of N1,000,000 fine or 7 years' imprisonment or both. Financial institutions must as a duty to their customers put in place effective counter fraud measures to safeguard their sensitive information. Where a security breach occurs the proof of negligence lies on the customer to prove the financial institution in question could have done more to safeguard its information integrity (section 19 of the Act).

xvi. **Fraudulent Issuance of E-Instruction**
Any person being authorised by any financial institution and charged with the responsibility of using computer or other electronic devices for financial transactions such as posting of debit and credit, issuance of electronic instructions or charged with the duty of confirmation of electronic transfer, unlawfully with intent to defraud issues false electronic or verbal messages

is guilty of an offence and is liable to imprisonment for 7 years (section 20 of the Act).

xvii. **Reporting of Cyber Threat**

Any person or institution who operates a computer system or a network, whether public or private must immediately inform the National Computer Emergency Response Team (CERT) Coordination Centre of any attacks, intrusions and other disruptions liable to hinder the functioning of another computer system or network, so that the National CERT can take the necessary measures to tackle the issues. Failure to so do attracts a mandatory fine of N2,000,000 into the National Cyber Security Fund (section 21 of the Act).

xviii. **Identity Theft and Impersonation**

Section 22 makes it an offence punishable with 7 years imprisonment or N5,000,000 fine or both for a person who is engaged in the services of any financial institution, and as a result of his special knowledge commits identity theft of its employer, staff, service providers and consultants with the intent to defraud. Fraudulent or dishonest use of electronic signature, password or any unique identification feature of any other person; or fraudulent impersonation of another entity or person, living or dead, with intent to gain advantage to oneself or obtain any property or interest in any property or cause disadvantage to the entity or person being impersonated or any other person; or avoid arrest or prosecution or obstruct, pervert or defeat the cause of justice.

Making of any false statement as to a material fact in writing knowing it to be false and with intent that it be relied upon respecting his identity or that of any other person or his financial condition or that of any other person for the purpose of procuring the issuance of a card or other instrument is an offence punishable with not more than 5 years' imprisonment or not more than N7,000,000 fine.

xix. **Child Pornography and Related Offences**

Section 23 lays down the offence of child pornography and related offences. It is to the effect that any person who intentionally uses any computer or network system in or for producing child pornography; offering or making

available child pornography; distributing or transmitting child pornography; procuring child pornography for one self or for another person; possessing child pornography in a computer system or in a computer data storage medium, commits an offence under this Act and is liable on conviction to a term of 10 years imprisonment or a fine not more than N20,000,000 or to both in the case of paragraphs (a), (b) and (c) and imprisonment for a term of 10 years or a fine of not more than N10,000,000 or to both in the case of paragraphs (d) and (e) above.

xx. **Cyber Stalking**

Section 24 provides for the offence of **cyber stalking**. It provides that any person who knowingly or intentionally sends a message or other matter by means of computer systems or network that is grossly offensive, pornographic or of an indecent, obscene or menacing character or causes any such message or matter to be sent; or he knows to be false, for the purpose of causing annoyance, inconvenience, danger, obstruction, insult, injury, criminal intimidation, enmity, hatred, ill-will or needless anxiety to another or causes such a message to be sent commits an offence under this Act and shall be liable on conviction to a fine of not more than N7,000,000 or imprisonment for a term of not more than 3 year or to both.

xxi. **Cyber Squatting**

A person is said to commit **cyber-squatting**, if he intentionally takes or makes use of a name, business name, trade mark, domain name or other word or phrase registered, owned or in use by any individual, body corporate or belonging to either the federal, state or local governments in Nigeria, on the internet or any other computer network, without authority or right or for the purpose of interfering with their use by the owner, registrant or legitimate prior user. The punishment on conviction is imprisonment for a term not more than 2 years or not more than N5,000,000 fine or to both. In awarding any penalty against an offender under section 25, the court shall have regard to the refusal by the offender to relinquish, upon former request by the rightful owner of the business, trade mark etc or an attempt by the offender to obtain compensation in any form for the release to the rightful owner for use in the internet of the business name, trade mark etc. The court may in addition to the penalty specified, make an order directing the

offender to relinquish such registered name, trade mark, domain name to the rightful owner (section 25 of the Act).

xxii. **Racist or Xenophobic Offences**

Section 26 makes it an offence for any person to distribute or otherwise makes available, any racist and xenophobic material to the public through a computer system or network or threatens, insult publicly, distribute or otherwise makes available, through a computer system or network, to the public, material which denies, approves or justifies acts constituting genocide or crime against humanity or threatens through a computer system or network, with the commission of a **criminal** offence, persons for the reason that they belong to a group, distinguished by race, colour, descent, national or ethnic origin, religion or a group of persons which is distinguished by any of these characteristics. The punishment on conviction is imprisonment for not more than 5 years or a fine of not more than N10,000,000 or both.

xxiii. **Attempt, Conspiracy, Aiding and Abetting**

Section 27 punishes any person who attempts to commit any offence under the Act or aids, abets, conspires, counsels or procures another person to commit an offence under the Act with the punishment provided for the principal offence under the Act. Any employee of a financial institution found to have connived with another person or group of persons to perpetrate fraud using computer system(s) or network, commits an offence and shall be liable on conviction to imprisonment for a term of not more than 7 years and shall, in addition, refund the stolen money or forfeits any property to which it has been converted to the bank, financial institution or the customer.

xxiv. **Importation and Fabrication of E-Tools**

It is provided under section 28 that any person who unlawfully produces, supplies, adapts, manipulates or procures for use, imports, exports, distributes, offers for sale or otherwise makes available any device including a computer program or a component designed or adapted for the purpose of committing an offence under the Act, or any device, including a computer program designed to overcome security measures in any computer system or network, with intent that the devices be utilised for the purpose of violating

any provision of the Act commits an offence and shall be punished with not more than 3 years imprisonment or a fine of not more than N7,000,000 or both.

xxv. **Breach of Confidence and Fabrication of E-Tools**

These offences are committed when a person or organisation who being a computer based service provider and/or vendor does any act with intent to defraud and by virtue of his position forges, illegally used security codes of the consumer with the intent to gain any financial and/or material advantage or with intent to provide less value for money in his or its services to the consumer. The punishment is a fine of N5,000,000 and forfeiture of further equivalent of the monetary value of the laws sustained by the consumer. Where a body corporate is convicted of an offence under this Act, the court may order the body corporate to be wound up and all its assets and properties forfeited to the federal government. If the offender is a natural person, the punishment is imprisonment for a term of not more than 7 years and to a fine of not more than N5,000,000 or to both (section 29 of the Act).

xxvi. **Manipulation of ATM/Point of Sales (POS) Terminals**

This offence is committed when a person manipulates ATM of POS Terminals with the intention to defraud. The punishment on conviction is 5 years imprisonment or N5,000,000 fine or both. Where the offence is committed by an employee of a financial institution the punishment is 7 years imprisonment without an option of fine (section 30 of the Act).

xxvii. **Employees Responsibility**

All employees in both public and private sectors must relinquish or surrender all codes and access rights to their employers immediately upon disengagement from their employment, if such code or access right constitutes a threat or risk to the employer. The Act punishes any employee who, without any lawful reason continues to hold on to the code or access right of his employer after disengagement without any lawful reason. The punishment is 3 years imprisonment or N3,000,000 or both (section 31 of the Act).

xxviii. **Phishing, Spamming, Spread of Computer Virus**

It is an offence under the Act to knowingly or intentionally engage in computer phishing; spamming with intent to disrupt the operations of a computer, be it public or private or financial institution; or engage in malicious or deliberate spread of viruses or any malware thereby causing damage to critical information in public, private or financial institution's computers. The punishment for the offences is 3 years' imprisonment or N1,000,000 fine or both (section 32 of the Act).

xxix. **Electronic Cards Related Fraud**

The offence of electronic cards related fraud is provided under section 33 of the Act. It is to the effect that any person who with intent to defraud, uses any access device including credit, debit, charge, loyalty and other types of financial cards, to obtain cash, credit, good or service commits an offence and on conviction is liable to not more than 7 years' imprisonment or a fine of not more than N5,000,000 or both such fine and imprisonment and shall be liable to payment in monetary terms the value of loss sustained by the owner of the credit card. Other forms of electronic cards related fraud are provided under subsections (2) to (13) of section 33 with varied degree of punishment.

xxx. **Dealing in Card of Another**

This offence is provided under section 34 of the Act. It punishes any person, other than the issuer, who receives and retains possession of two or more cards issued in the name or names of different cash holders, which cards knows were taken or retained under circumstances which constitute a card theft with 3 years' imprisonment or a fine of N1,000,000 and shall further be liable to repayment in monetary terms the value of loss sustained by the card holder or forfeiture of the assets or goods acquired with the funds from the account of the card holder.

xxxi. **Purchase or Sale of Card of Another**

A person who sells a card or buys a card from a person other than an issuer or their authorised agents commits an offence and is liable on summary conviction to a fine of N500,000. The person shall further be liable to repayment in monetary terms the value of loss sustained by the card holder

or forfeiture of the assets or goods acquired with the funds from the account of the card holder (section 35 of the Act).

xxxii. **Use of Fraudulent Device or Attached E-Mails and Websites**

Here, a person who with intent to defraud uses any device or attachment, e-mail or fraudulent website to obtain information or details of a card holder or fraudulently redirect funds transfer instructions during transmissions or any authorised communications path or device and redirect funds transferred electronically with an authorised account. The punishment is imprisonment for a period of 3 years or a fine of N1,000,000 or both. He shall further be liable to repayment in monetary terms the value of loss sustained by the card holder or forfeiture of the assets or goods acquired with the funds from the account of the card holder (section 36 of the Act).

xxxiii. **Duties of Financial Institutions**

By virtue of section 37 of the Act, all financial institutions shall verify the identity of their customers carrying out electronic financial transactions by requiring the customers to present documents bearing their names, addresses and other relevant information before issuance of ATM cards, credit cards, debit cards and other related electronic devices; apply the principle of know your customers in documentation of customers preceding execution of customers electronic transfer, payment, debit and issuance orders. Any official or organisation who fails to so do commits an offence and shall be liable on conviction to a fine of N5,000,000. Any financial institution that makes unauthorised debit on a customer's account shall upon written notification by the customer reverse such debit within 72 hours, failing which such financial institution shall be guilty of an offence and liable on conviction to restitution of the debit and a fine of N5,000,000.

xxxiv. **Duties of Service Providers**

Section 38 of the Act provides for the duties of service providers. It deals with records retention and protection of data. It is to the effect that a service provider must keep all traffic data and subscriber information as may be prescribed by the relevant authority for the time being, responsible for the regulation of communication services in Nigeria for a period of 2 years. A service provider shall at the request of the relevant authority or any law

enforcement agency preserve, hold or retain any traffic data, subscriber information, non-content information, and content data or release any information required to be kept under subsection (1). Any data retained, processed or retrieved by the service provider at the request of any law enforcement agency under this Act shall not be utilised except for legitimate purposes as may be provided for under this Act, any other legislation, regulation or by an order of a court of competent jurisdiction. Any contravention of the provision of section 38 attracts on conviction, an imprisonment for a term of not more than 3 years or a fine of not more than N7,000,000 or to both.

In-text Question:
1. *List 5 offences under the Cybercrimes Act, 2015*

In-text Answer:
1. *Illegal access/illegal interception*
2. *System interference*
3. *Child pornography*
4. *Xenophobia*
5. *Computer related fraud*

3.0 Study Session Summary/Conclusion

We have come to the end of this session. Like I said in the Introduction, this course is a very strict and technical one which has to do with the citation and interpretation of legal provisions. And that is why I begged you from the onset to be more attentive in order not to lose interest.

Computer crime and cybercrime seem to be similar but both are different. **Computer crime** belongs to any individual computer without the internet connection i.e. physically whereas **cybercrime** happens in **cyberspace** through the Internet only.

4.0 Self-Assessment Questions

1. What is the difference between the computer crimes and the cybercrimes?
2. Write short explanatory note on the following:
3. (i) Cyber Stalking (ii) Cyber Squatting (iii) Racist and Xenophobic offences.
4. Computer crime and cybercrime seem to be similar but both are different.

Computer crime belongs to any individual computer without the Internet connection i.e. physically whereas cybercrime happens in cyberspace through the Internet only.

5.0 Additional Activities (Videos, Animations &Out of Class activities) e.g.

a. Visit U-tube add https://bit.ly/2wwULi5. Watch the video & summarise in 1 paragraph

b. View the animation on add/site https://bit.ly/2JIFXUM& https://bit.ly/2E8O4Wq and critique it in the discussion forum

6.0 References/Further Readings

Computer Crime: Criminal Justice Resource Manual (1973). Schjolberg, S., (1986). Computers and Penal Legislation: A Study of the Legal Politics of a new Technology. Complex 3/86, Universiteteforlaget

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Recommendation No. R (89)9, adopted by the Committee of Ministers of the Council of Europe on September 13, 1989 and Report by the European Committee on Crime Problems: Computer-relatred crime. http://cm.cre.int/ta/rec/1989/89rg.htm

Recommendation No. R (95)13, approved by the European Committee on Crime Problems (CDPC) at its 44th Plenary Session, May 29-June 2, 1995: Concerning problems of criminal procedural law connected with information technology. http://cm/coe/int/ta/rec/1995/95r/13.htm

Schjolberg, S. 'The History of Global Harmonization on Cybercrimes legislation: The Road to Geneva?' Retrieved from http://www.cybercrimeslaw-net/documents/ cybercrimes-history.pdf

Study Session 3

Torts Related to Electronic Information

Section and Subsection headings:

Introduction
1.0 Learning Outcomes
2.0 Main Content
2.1- Negligent Misstatement
2.2- Defamation on the Internet
2.3- E-mails, Defamation and Malicious Falsehood
2.4- E-mails and Trespass to Goods
2.5- Internet Service Providers (ISPs) and Defamation
2.6- Disclosure of Identity of Wrongdoer
3.0 Study Session Summary/Conclusion
4.0 Self-Assessment Questions
5.0 Additional Activities (Videos, Animations &Out of Class activities)
6.0 References/Further Readings

Fig 1.3.1: Negligent Misstatement

Introduction

You are welcome to another study session. In this session we shall examine **torts related to electronic information**. In case you do not know, tort is an area of law which civil liability may attach to a person independently of the existence of a contract. Areas covered by the law of tort include negligence (**including negligent misstatement**), defamation, malicious falsehood and nuisance.

1.0 Learning Outcomes

After studying this session, I expect you to be able to:

1. Identify torts related to electronic information;
2. Discuss the various types of tortious actions in connection to electronic information.

2.0 Main Content

2.1 Negligent Misstatement

Liability can ensue where a statement which proves to be incorrect is made negligently by a person holding himself out as being an expert in the relevant field who intends that statement to be taken seriously. Typically, any person giving advice, whether or not in the course of performing a contract, will

attempt to minimise their potential liability, adding a notice, a term excluding or limiting his or her liability should the statement turn out to be incorrect. In the United Kingdom, the Unfair Contract Terms Act 1977 controls such notices or terms and they will be ineffective in the case of death or personal injury, and in other cases, will only be effective if and to the extent that they meet the requirement of reasonableness as set out in that act.

Thus, any **information placed on website** which purports to give advice could be actionable under the law of negligent misstatement if it turns out to be incorrect, subject to any valid exclusion or limitation clauses. However, if someone gives advice specifically directed to a particular person or class of persons by email which is intended to be taken seriously and acted upon by that person or persons, then there is no reason why liability in principle cannot ensue should the advice turn out to be wrong and given negligently.

Things might be different where **information containing** advice, whether or not intended to be taken seriously and acted upon, is placed on a website, bulletin board or in a blog. Cases on negligent misstatement have in the past concentrated on the importance of a special relationship between the giver of the statement and a person who suffers loss as a result of relying on it. For example, it may be asked: Was the advice or information compiled for and directed for the person who relied on it? Is there sufficient proximity between the maker of the statement and the person relying on it? (Caparo Industries Plc v. Dickman (1990) 2 AC 605; Barings Plc v. Coopers and Lybrand (2002) 2 BCLC 364). Thus, owners of websites must take account of variations in the scope and extent of liability for statements in different jurisdictions. Again, the use of a suitably worded disclaimer could be important.

Fig 1.3.2: Defamation on the Internet

2.2 Defamation on the Internet

The law of defamation on the internet would require to be reconsidered in the light of this unique medium of instant worldwide communication. The issues that arise relates partly from the nature of defamation as a cause of action, differences in **national laws on defamation and jurisdictional issues**. Publication on the internet is different in that it is publication to the entire world. Factors relevant to intellectual property right such as where a particular advertisement on a website is targeted seem less relevant for defamatory statements. There have been a number of cases of defamation on the internet. Some of the cases give a flavour of dangers of being careless or too forthright in making statements available over the internet. In Rindos v. Hardwick, Unreported 21st March, 1931, the Supreme Court of Western Australia found that a statement made by an academic which seriously denigrated another academic's competence and which also imputed misconduct on his part was defamatory and awarded A$40,000 in damages. In Stratton Oakmont Inc. v. Prodigy Services Company (1995) NY MISC. LEXIS 229, the Supreme Court of the State of New York held that the Defendant, a service provider, was the publisher of statement on its bulletin board and granted summary judgment against

it in respect of libellous statement made on the bulletin board. The statements made claims that the Claimant had committed fraudulent acts in relation to a public offering of company stocks. In the United Kingdom, a lecturer accepted undisclosed damages in an out of court settlement for online statements that were potentially defamatory. A college lecturer had to pay £10,000 in damages together with cost of £7,200 after posting a blog describing UKIP candidate as a '**lard brain'**, 'Nazi', '**racist bigot' and a 'nonce'**.

The placing of **defamatory material** on a website or bulletin board or in a blog or sending such material in or attached to emails give rise to a number of issues that relates to the nature of the internet. One is the Multiple Publication Rule which applies in the UK and other places where every time a libel is published, a new cause of action accrues. Another area of concern has to do with the global nature of the internet and may cause courts to question whether they have jurisdiction to hear a defamation claim. There is also the danger of posting defamatory statement on a website or in a blog which may give rise to concurrent liability in a number of jurisdictions, exposing the person responsible and possibly the service provider to multiple claims in different countries. The position of publishers, as opposed to the author of defamatory statement is also an issue.

2.3E-mails, Defamation and Malicious Falsehood

As a libellous statement is actionable if published to a single person other than the person who is the subject of the statement, there is potentially great scope for defamation by **e-mail** especially as many of us send e-mails without carefully checking what is contained in them. It would be nice if we could have a delay in sending out mails until we have had the opportunity to read them through a little later. The immediacy of this method of sending messages and attached documents, images and the like is one of its strength but also one of the dangers of the medium. The use of e-mail to work out a grudge is foolish even if the e-mail is sent to only one person or a small number of persons. In Takenaka (UK) v. Frankl (Unreported) 11th October, 2000, defamatory e-mail messages were sent via Hotmail to the Claimants; it was accepted that the messages were defamatory and the central issue was whether the Defendant had been responsible for sending them. The judge was of the opinion that the defendant was responsible for the messages.

Malicious falsehood is a tort related to defamation and applies where someone makes a false statement maliciously about a person's business. In 1995 in the UK, rumour started to spread that a competitor, Western Provident Association, was being investigated by the Department of Trade and Industry and that the Association was close to insolvency. The statements had been made by employees of Norwich Union on its internal e-mail system. Western Provident brought an action for malicious falsehood and Norwich Union eventually settled out of court for £450,000.

In-text Question
Explain what is meant by negligent misstatement

Answer
Liability can ensue where a statement which proves to be incorrect is made negligently by a person holding himself out as being an expert in the relevant field who intends that statement to be taken seriously.

2.4 E-mails and Trespass to Goods

Whether the concept of trespass, which has since been supplemented by statute, applies in **relation to electronic information** is an important question and could have significant implications in relation to unwanted transmission of e-mails and electronic advertising materials that are no worse than being of nuisance value, let alone containing defamatory statement. In terms of sending unwelcome e-mails, is this trespass to goods? This action is included under wrongful interference with goods. It must be a direct interference with goods and it has been said that this would include, for example, moving a chattel or throwing something at it or writing with a finger in the dust on the surface of a car. It could be argued that sending an unwanted e-mail could fall within this tort, whether or not it contains defamatory material. The main questions are whether sending unwanted e-mails and spam interferes with goods.

2.5 Internet Service Providers (ISPs) and Defamation

Organisations providing internet access or providing website space or otherwise publishing online material created by other persons are potentially liable in a number of ways for the content of the material so made available. Information placed on the **internet may infringe on copyright**, including a defamatory or negligent misstatement, breach of confidence, be pornographic, or be illegal in a

number or ways. This section is concerned with defamatory statement and is written from perspective of ISPs but much the same principles apply to others deemed to be publishers of the information. Traditional publishers usually include in the formal contract with an author a warranty from the author that the material concerned is not **defamatory** in any way. In the agreement, the author will be required to indemnify the publisher should the publisher be sued for libel or malicious falsehood and have to pay damages.

Publishing information on the internet can be done on a number of ways, for example, an ISP (I hope you remember that ISP means Internet Service Provider) may act as a host, providing a subscriber with space to upload web pages or allow a subscriber to paste material on a bulletin board or newsgroup or the ISP may simply act as a conduit through which information is passed, such as by e-mail or by instant messaging. Liability under information flows by the act of publishing the defamatory statement. Therefore, it is the person publishing the statement who is liable. Generally, the author of the statement will be considered to have published it as will the publisher himself. However, some specific defences have developed to exclude or limit the liability of publishers who are unaware of the defamatory nature of the statement. Certain defences such as qualified privilege, publisher of innocent defamation may make an offer of amends, requiring the publication of a suitable apology and correction as commonly seen in newspapers. A defence may apply if you are able to show that you were not the author, editor or publisher of the statement complained of; if you took reasonable care in relation to its publication; and you did not know, and had no reason to believe that what you did caused or contributed to the contribution of defamatory statement.

2.6 Disclosure of Identity of Wrongdoer

An ISP is subject to Data Protection Law and this may restrict disclosure of personal data relating to subscribers to third parties. In many cases, ISPs and website operators will have an express term in their contracts with subscribers confirming that their identity will not be disclosed to anyone else, except where required by **law,** for example, for the purposes of prevention and detection of crime. In Totalise Plc v. Motley Fool Ltd. (2001) 1 WLR 1233, the Claimant was an ISP and the Defendants operated website which included discussion boards. The contract the Defendants had with the subscribers contained a term that there identity would not be disclosed. An anonymous contributor to the discussion board posted material which was alleged to be defamatory of the Claimant's company, its

officers and directors. The judge thought that the material was plainly **defamatory** and that the contributor was waging an intensive **campaign of vilification against the Claimant**. The Claimant sought an order requiring the Defendants to disclose the identity of the contributor. The Defendants eventually barred the contributor access to their site. However, the identity of the contributor was not disclosed on the ground that it will be contrary to the Data Protection Act, 1998. The judge had no hesitation in granting the order for disclosure on the basis of Norwich Pharmaceutical Co. v. Customs and Excise Commissioners (1974) AC 133 which gives a court jurisdiction to order a third party to disclose the identity of a wrongdoer. However, he awarded cost against the Defendants who had taken a neutral stance on the issue of the granting of such an order. The normal rule with cost and Norwich Pharmaceutical orders is that the person applying for the order for disclosure should bear the costs of the application. This was confirmed on appeal to the Court of Appeal which set aside the order for cost, saying that it was legitimate for a party who reasonably agreed to keep information confidential and private to refuse to handover such information voluntarily.

In-text Question
Explain the term defamation on the internet

Answer
The law of defamation on the internet would require to be reconsidered in the light of this unique medium of instant worldwide communication. The issues that arise relates partly from the nature of defamation as a cause of action, differences in national laws on defamation and jurisdictional issues.

3.0 Study Session Summary/Conclusion

We have come to the end of this session. Something tells me that at this point, you are now resolving to be more careful with your online activities including what you post and what you forward to others. If that is the case, I am glad that that this session has not been a waste of time.

The tort **of defamation** is the law which recognises in everyone the right to have the estimation in which he stands in the opinion of others unaffected by false statement to his credit. **Placing misleading or incorrect "advice"** on a website may result to liability for negligent misstatement, but only if targeted on specific individual or groups, otherwise there is unlikely to be sufficient proximity. The

law of defamation is important in relation to websites, bulletin boards, e-mails and blogs. Placing materials including images on the internet which tends to lower a person's esteem among right thinking members of society will be libel rather than slander. Libel is actionable without proof of damage. An e-mail sent to one person only, other than the victim, can be a libel. Unsolicited e-mails may be trespass goods. There is a publisher's defence to defamation that may only be online, but the defence may be lost once informed of potentially defamatory material. The multiple publication rule means that there is no **global tort theory**; every time **defamatory material** is accessed, a fresh libel occurs; causes of action may accrue in numerous jurisdiction. A court may order the disclosure of the identity of a person posting defamatory material.

4.0 Self-Assessment Questions

1. What is negligent misstatement?
2. Discuss the various instances of torts related to electronic information.
3. Negligent misstatement arises where information is placed on website which purports to give advice and it turns out to be incorrect, subject to any valid exclusion or limitation clauses. Such advice must be specifically directed to a particular person or class of persons by email which is intended to be taken seriously and acted upon by that person or persons.

5.0 Additional Activities (Videos, Animations &Out of Class activities) e.g.

a. Visit U-tube add https://bit.ly/2Wyhclz. Watch the video & summarise in 1 paragraph

b. View the animation on add/site https://bit.ly/2Y64A1B and critique it in the discussion forum

6.0 References/Further Readings

Bainbridge, D. I. (2008) Introduction to Information Technology Law. Sixth Edition, Pearson Longman, England.

Study Session 4

Liability for Statements/Defamation and Defences

Section and Subsection headings:

Introduction
1.0 Learning Outcomes
2.0Main Content
2.1- Liability for Statements
2.2- Elements of Defamation
2.3- Defences to Defamatory Actions
2.4- Review of Case Laws
3.0Study Session Summary/Conclusion
5.0 Self-Assessment Questions
5.0 Additional Activities (Videos, Animations &Out of Class activities)
6.0 References/Further Readings

Introduction

You are welcome to another study session. In this sessionwe shall examine liability for statements, defamation and defences.

1.0 Learning Outcomes

After studying this session, I expect you to be able to:

1. Explain the meaning of liability for statement.
2. Discuss defamation and defences.

2.0 Main Content

2.1 Liability for Statements

The tort of **defamation** can be summarised as the law which recognises in every man the right to have the estimation in which he stands in the opinion of others unaffected by false statements to his credit. The Nigerian law of **defamation** substantially derives from the common law. However, some statutory **modifications** have been effected through local legislation such as the **Defamation** Act and the **Defamation Law** of the various states. Even though there is no single satisfactory definition of the word **defamation**, Baron Parke defines it as "a

publication without **justification** or lawful excuse which is calculated to injure the reputation of another by exposing him to hatred, contempt or ridicule." Modern efforts emphasise that a statement only becomes defamatory when it culminates lowering of a person's reputation or prestige in the eyes of the right thinking members of the society. Such statement may make people to shun the person's company. **Defamation** consists of two limbs: (a) slander and (b) libel. The only difference between slander and libel stems from medium of publication.

A libel is any defamatory statement which is expressed in writing or other permanent or visible form such as cartoons, pictures, paintings or printed matter, while slander is a defamatory statement expressed in spoken words or other forms whether audible or visible such as sound. A malicious hiss is slanderous. **Defamation** through the agency of cinematography or films constitutes libel. The most important distinction between libel and slander is that the law presumes that some damage will flow from the publication of the libel, hence it is said that libel is actionable *per se.* On the other hand, for slander to be actionable some damage must be proved. However, certain categories of slander are actionable ***per se***. These include:

a. Where the words complained of impute a crime for which a person can be subjected to punishment.
b. Where the words suggest that the person has a contagious or infectious disease such as leprosy.
c. Where the words impute unchastity or adultery to a girl or woman.
d. Where the words are calculated to disparage the person either in office, profession, business or trade. E.g. that a lawyer has no knowledge of the law.

In Nigeria, both libel and slander can give rise to criminal prosecution under section 373 of the Criminal Code and 219 of the Penal Code.

In-text Question
Explain liability for statements

Answer
The tort of defamation can be summarised as the law which recognises in every man the right to have the estimation in which he stands in the opinion of others unaffected by false statements to his credit.

2.2 Elements of Defamation

Fig 1.4.1: Elements of Defamation

a. **The statement must be defamatory**
Where a statement contains a false accusation, whether of a crime, dishonesty, cruelty, ingratitude or incompetence in one's profession or where it contains a false imputation of misfortune such as insanity, rape, insolvency, such statements are been held as **defamatory.** At times, a statement may be **defamatory** by implication, generally referred to as ***innuendo.*** **An *innuendo*** means a statement which the plaintiff complains of and pleads that although the words used are ordinarily not **defamatory**, when they are taken together with other words or facts known to some people.

b. **The statement must refer to the plaintiff**
Here you must be able to establish in a trial that the said statement referred to you, that any reasonable person should be able to draw inference that the statement refers to you. But where the statement refers to a class or group of persons, no individual member of the group can single himself out as a victim of **defamation** except if he can show that the statement had him in mind.

c. **The statement must be published**
This means the bringing of a **defamatory** statement to the knowledge of any person other than the person **defamed**. There will be no publication in the following circumstances:

i. Where the communication of something **defamatory** of a third party is between husband and wife.
ii. Where a third party gets to know of the content of **defamation** by his own wrongful act. E.g. Sending a letter through the post in an unsealed envelope.

iii. If the plaintiff is responsible for the communication of the **defamatory** statement to a third party.

2.3 Defences to Defamatory Actions

Fig 1.4.2: Defences to Defamatory Actions

a. **Consent**
   This is where a person expressly or impliedly consents to the publication of a matter, which prima facie is true; the defendant will be exculpated from liability.
b. **Unintended Defamation**
   At common law, it was no defence to **defamation** to argue that the **defendant** did not intend to **defame** the plaintiff. Such a factor would only serve to reduce the damages or compensation payable to the plaintiff. However, in order to mitigate the harsh consequences of common law, various **defamation** statutes now provide generally that where words are prima facie not defamatory and the publisher of such words does not know of circumstances by which the words may be understood to be **defamatory** and the publisher exercised all reasonable care in respect of the publication, he will not be liable for defamation.
c. **Justification**
   Here the defendant is saying that the allegations which the plaintiff complained of are true.
d. **Fair Comment**
   It is the basic right of every citizen to comments on matters of public interest. Generally there is no clear cut definition on what constitute public interest.

In-text Question
Itemise the elements of defamation

Answer
1.The statement must be defamatory
2.The statement must refer to the plaintiff
3.The statement must be published

3.0 Conclusion/Summary

The distinction between slander and libel stems from medium of publication, that is, whether expressly in spoken words or in writing. To establish **defamation**, the plaintiff must prove that the statement is **defamatory**, the statement is referred to the plaintiff and there must be publication to third parties. A **defendant** to a **defamatory** action may rely on the defences of consent, absence of intention, **justification** and fair comment to escape liability.

4.0 Self-Assessment Questions

1. List 4 defences to liability for statements
2. Consent, justification, fair comment and absence of intention.
3. Using judicial authorities, examine the defences to **defamatory** actions.

5.0 Additional Activities (Videos, Animations &Out of Class activities) e.g.

a. Visit U-tube add https://bit.ly/2QBWewT. Watch the video & summarise in 1 paragraph
b. View the animation on add/site https://bit.ly/2QBWewT 7
https://bit.ly/2JXq0ZR and critique it in the discussion forum

6.0 References/Further Readings

Kodilinye and Aluko (1999) *The Nigerian Law of Torts.* Spectrum Publishers, Ibadan – Nigeria.
Omotesho, A. (2009) *The Laws of Tort in Nigeria*: *Selected Themes.* Mathouse Law Books, Lagos.

Study Session 5

Review of Case Laws

Section and Subsection Headings:

Introduction
1.0 Learning Outcomes
2.0 Main Content
2.1- Review of Case Laws
3.0 Study Session Summary/Conclusion
4.0 Self-Assessment Questions
5.0 Additional Activities (Videos, Animations &Out of Class activities)
6.0 References/Further Readings

Introduction:

In this session, you will learn about the case law principles of the contents above.We will be studying some examples that cover the topics we have discussed in the previous sessions.

1.0 Study Session Learning Outcomes

After studying this session, I expect you to be able to:

1. Discuss the case law principles about the subject matters examined above.

2.0 Main Content

2.1Review of Case Laws

1. African Newspapers Ltd. v. Coker (1973) 1 NMLR 386
2. Ukpoma v. Daily Times of Nig. Ltd. (1979) 2 LRN 357
3. Bandele v. Daily Times of Nig. Ltd. (1974) 6 CCHCJ 755
4. Okolo v. Midwest Newspaper Corporation (1974) 2 CCHCJ 203
5. Lewis v. Daily Telegraph Ltd. (1964) AC 234
6. Awolowo v. Kingsway Stores Nig. Ltd. (1968) 2 All NLR 217
7. Egbuna v. Amalgamated Press of Nig. Ltd. (1967) 1 All NLR 25
8. African Press Ltd. v. Ikejiani (1953) 14 WACA 386
9. Daily Times v. Williams (1986) 4 NWLR (pt. 6) 526
10. New Nigeria Newspaper Ltd. v. Ote (1992) 4 NWLR (pt. 237) 626
11. Registered Trustees of AMORC v. Awoniyi (1994) 7 NWLR

12. Bendel Newspaper Corporation v. Okafor (1993) 4 NWLR (pt. 289) 617
13. Dina v. New Nigeria Newspaper Ltd. (1986) 2 NWLR (pt. 22) 353
14. IBWA v. Kennedy Transport (1993) 7 NWLR (pt. 304) 238
15. Onu v. Agbese (1985) 1 NWLR (pt. 4) 704
16. Odun v. Atoyebi (1987) 2 NWLR (pt. 58) 660
17. Egbe v. Adeforasin (1987) 1 NWLR (pt. 47) 47
18. Acka v. Akure (11987) 1 NWLR (pt. 47) 74
19. Yesufu v. Gbadomosi (1993) 6 NWLR (pt. 229) 363
20. Giwa v. Ajayi (1993) 5 NWLR (pt. 294) 423

Module 2

Contents:

Study Session 1: Definition, Objectives, Justification and Theories of Intellectual Property.
Study Session 2: Overview of Statutory and Institutional Framework for IPR in Nigeria
Study Session 3: Emerging Development, International Responses and Basic Principles of Copyrights
Study Session 4: Review of Case Laws

Study Session 1

Definition, Objectives, Justification and Theories of Intellectual Property

Section and Subsection Headings

Introduction
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2.0 Main Content
2.1- Definitions and Objectives of Intellectual Property
2.2- Justification and Theories of Intellectual Property Protection
4.0Study Session Summary/Conclusion
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Introduction:

In this session, you will learn about definitions, objectives, **justification** and **theories of intellectual property**.

1.0 Study Session Learning Outcomes

After studying this session, I expect you to be able to:

1. Explain and discuss the definitions, objectives, **justifications** and **theories of intellectual property**.

2.0 Main Content

2.1 Definitions and Objectives of Intellectual Property

Intellectual property has been defined as legal rights which result from intellectual activity in the industrial, scientific, literary and artistic fields. They are **legal rights** that may be asserted in respect of the product of human intellect. It is also defined as that area of law which concerns legal right associated with creative effort or commercial reputation and goodwill. It is also seen as a branch of law which protects some of the finer manifestation of human achievement. Furthermore, intellectual property may be defined as legal rights conferred on those who engaged in creative, inventive and promotional activities which have resulted in original, useful or other beneficial output. Intellectual property, unlike physical property, is incapable of being physically owned or possessed and can therefore be simultaneously enjoyed by different users without being lost to the creator or owner.

According to the convention establishing World International Property Organisation (WIPO), intellectual property shall include rights relating to literary, artistic and scientific works; performances of performing artists; phonograms and broadcasts; inventions in all fields of human endeavour; scientific discoveries; industrial designs; trademarks, service marks, commercial names and designations; protection against unfair competition; and all other right resulting from intellectual activity in the industrial, scientific, literary or artistic fields. These rights are categorised into two parts: copyright and neighbouring rights on the one hand, and **industrial property rights** on the other hand.

The intellectual property system is designed to meet broad objectives.

Fig 2.1.1: Intellectual Property

The first objective is to protect the private interest of owners of intellectual works by recognising their ownership rights in their creation and inventions. In this regard, the **justification** for protection of the intellectual property rights exist

under International Human Rights standards such as the Universal Declaration of Human Rights (UDHR), 1948 and the International Covenant on Economic, Social and Cultural Rights (ICESCR), 1966 (Article 27 UDHR and Article 15 ICESCR).

The second objective is to promote public interest by providing access to a wide variety of works and inventions in diverse sectors relevant to societal well-being. This is by encouraging investments in creative and inventive endeavours and the discloser and dissemination of the outcomes of these endeavours for the common good.

On the face of it, the twin objectives of private protection and public access appear contradictory, because protection gives rise to exclusion of the public from access. However, this is not necessarily so, because in appropriate cases, protection of private interest helps to foster a conducive environment for creativity, inventive activity and innovation, which in the long term is beneficial to the public. In the absence of a legal regime, there may be a disincentive to creators to invest time, efforts and resources in the creation of new products. For example, failure to protect copyright owners from piracy of their books, music and other works may discourage the investment of time, money and efforts in creating new intellectual works which enrich the world of education, information and entertainment.

In-text Question
Define intellectual property

Answer
Intellectual property has been defined as legal rights which result from intellectual activity in the industrial, scientific, literary and artistic fields.

2.2Justification and Theories of Intellectual Property Protection

It has been submitted that the fact that a product of the mind has cost its producers money and labour, and has a value for which others are willing to pay, is not sufficient to ensure to it **this legal attribute of property**.

Fig 2.1.2: Justification and Theories of Intellectual Property Protection

The general rule is that the nobles of human productions – knowledge, truths, ascertained conceptions and ideas become, after voluntary communication to others, free as the air to common use. It is also canvased that others also need free access to ideas and thus exclusivity may not promote free flow and dissemination of ideas. In traditional African context, no one claims exclusive rights to most types of cultural information including agricultural and ecological knowledge as well as proverbs or the use of folklores or stories which largely remain available to members of the community to use as and when the occasion demands.

A number of **theories** underlie intellectual protection. These **theories** include:

a. **The Economic Theory**
   Also referred to as the Utilitarian Theory, this theory posits that everyone were to be allowed to use the results of innovative and creative activity freely. Creators of intellectual works may be unable to recoup their investment due to the activities of free riders such as copiers and imitators. Due to the fact that these free riders do not have to factor in the cost of research and development but bear only the actual cost of production comprising manufacturing and distribution costs, they are better positioned to offer consumers identical works or products at much cheaper prices, thereby undercutting creators and inventors in the market place. Such a possibility can be a deterrent to research and investment in intellectual works, to the disadvantage of the larger society.
b. **The Natural Rights (Labour) Theory**
   This theory originated from the Lockean **justification** of the conferment of property rights on persons who labour upon resources that are either un-owned or held in common. Given that many resources cannot be enjoyed in their natural state, there is a need for individuals to convert these resources into private property by exerting labour upon them, thereby adding value to the resources. According to Locke, such labourers have a natural property right to the fruit of their labour, and the state owes a duty to respect, protect and enforce that natural right. Even though the raw materials (ideas, facts and concept) that go into the creation of the original or inventive work are often obtained by the creator from the public domain, the subsequent exertion of labour, efforts and skill by the creator justifies the conferment of property right. Thus, property rights in intellectual works are justified on the basis that people

have a right to enjoy the fruits of their labour, even where the labours are intellectual and conversely to justify the exclusion of others from the utilisation of the property on the ground that no one should rip where he has sown.

c. **Reward/Incentive Theory**

The Reward **Theory** is based on the belief that society has a moral obligation to compensate and reward inventors and creators of intellectual works. It perceives the conferment of intellectual property right as a just reward owed and given in return for the exercise of the creative faculties and the attendant services to the society. The argument against this theory is that conferment of property rights in itself, offers a potential reward to the creator and that the realisation of full financial benefits and/or public recognition may be dependent not on the grant itself, but on successful commercial exploitation.

d. **Development Theory**

An emerging trend in intellectual property **theoretical** framework is the viewing of intellectual property protection as a means to the desirable end of socio-economic and technological development. According to the proponents of this view, protection of intellectual property is only justified if society receives commensurate value from the rights granted and the intellectual property law as vehicles for socio-economic growth and development and the realisation of human rights, should be designed and implemented as such. Such values expected to be added to the society includes cultural growth, employment generation through small and medium scale enterprises and technological development. The development perspective needs to be embraced as providing developing countries with philosophical **justification** to weigh the potential benefits vis-à-vis the likely burdens involved in intellectual property laws and policies and maximise the opportunities afforded by flexibilities provided in international treaties to their advantage.

In-text Question

itemize the theories of intellectual protection

Answer

1. Development Theory

2. Reward/Incentive Theory

3. The Natural Rights (Labour) Theory
4. The Economic Theory

3.0 Conclusion/Summary

We have seen that intellectual property has been defined among other ways as legal rights which result from intellectual activity in the scientific, literary, artistic and industrial fields. It is a branch of law which protects some of the finer manifestation of human achievement. The **intellectual property system**is designed to protect the private interest of owners of intellectual works by recognising their ownership rights in their creation and invention and to promote public interest by providing access to a wide variety of works and inventions in diverse sectors relevant to societal well-being. The fact that a product of the mind has cost its producers money and labour, and has a value for which others are willing to pay is sufficient to ensure to it this legal attribute of property. **Theories** such as utilitarian, natural rights, incentive and developments have underlined **intellectual protection and property rights**.

4.0 Self-Assessment Question

1. What is Intellectual Property Rights?
2. Intellectual **Property Rights** are legal rights which result from intellectual activity in the scientific, literary, artistic and industrial fields. They are branches of law which protects some of the finer manifestation of human achievements.
3. Examine the theories of Intellectual Property.

5.0 Additional Activities (Videos, Animations &Out of Class activities) e.g.

a. Visit U-tube add https://bit.ly/2JNZqEZ. Watch the video & summarise in 1 paragraph

b. View the animation on add/site https://bit.ly/2JnEpR7&https://bit.ly/2M7p1Js& https://bit.ly/2MaKmBP and critique it in the discussion forum

6.0 References/Further Readings

Oyewunmi, A. O. (2018) *Nigerian Law of Intellectual Property*. University of Lagos Press and Bookshop Ltd., Lagos.

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Study Session 2

Overview of the Statutory and Institutional Framework for the Administration of Intellectual Property Rights in Nigeria

Section and Subsection Headings:

Introduction
1.0 Learning Outcomes
2.0 Main Content
2.1- Overview of the Statutory and Institutional Framework for the Administration of Intellectual Property Rights in Nigeria
3.0 Study Session Summary/Conclusion
4.0 Self-Assessment Questions
5.0 Additional Activities (Videos, Animations &Out of Class activities)
6.0 References/Further Readings

Introduction:

Welcome to another session. Just as with the previous session, we are still on intellectual property rights. Here, you will learn about the statutory and institutional framework for the administration of Intellectual Property Rights in Nigeria.

1.0 Study Session Learning Outcomes

After studying this session, I expect you to be able to:

1.Discuss the statutory and institutional framework for the administration of Intellectual Property Rights in Nigeria.

Fig 2.2.1: Intellectual Property Rights in Nigeria

2.0 Main Content

2.1Overview of the Statutory and Institutional Framework for the Administration of Intellectual Property Rights in Nigeria

In Nigeria, a number of laws have a bearing on the protection and **administration** of the rights that make up **intellectual property**. However, the three main statutes are the Copyright Act (Cap C28 LFN, 2004), the Patent and Designs Act (Cap P2 LFN, 2004) and the Trademarks Act (Cap T13 LFN, 2004). Others include National Film and Video Censors Board Act (Cap N40 LFN, 2004), the National Broadcasting Commission Act (Cap N11 LFN, 2004), National Office of Technology Acquisition and Protection Act (Cap N62 LFN, 2004), the Trade Malpractices Act (Cap T12 LFN, 2004), and the Consumer Protection Council Act (Cap C25 LFN, 2004). The responsibility for administration of copyrights lies with the Nigeria Copyright Commission. The Commission is responsible for monitoring and advising on all matters relating to copyright in Nigeria including external relations with international and other bodies on the country's position in relation to international conventions and the conclusion of bilateral and multilateral agreements (**section 34(4)** of the Act). The Commission is empowered to grant licences, appoint copyright inspectors and approve and register collecting societies to administer different categories of works in appropriate cases (section 39 of the Act).The National Film and Video Censors Board play critical roles in the administration of **copyright** in the entertainment industry such as Nollywood. The Board licences persons and premises for exhibiting and video works and prescribe safety precaution to be observed in the premises (**sections 2 and 25 of the Act**).

The National Broadcasting Commission (NBC) regulates the administration of broadcast's rights which fall within the purview of the **Copyright Act** (section 1 of the Copyright Act). The functions include receiving, processing and considering application for ownership of radio, television stations, TV services, direct satellite broadcast; regulating and controlling the broadcasting industry; receiving and investigating complaints from individuals and bodies regarding content of a broadcast or conduct of a station among others (section 9-13 of the NBC Act).

The Patent and Designs Act, the Trademarks Act, the National Office of Technology Acquisition and Protection (NOTAP) Act, the Trade Malpractices Act and the Consumer Protection Council Act provide for the administration of matters pertaining to use and protection of industrial property rights. The major responsibility for the administration of industrial property in Nigeria falls on the Trademarks, Patent and Designs Registry in Abuja. The functions of the Registry

include the receipt and processing of applications for registration, imposition and collection of fees in respect of renewals, registration of the laps, surrender or expiry of grants as well as registration of licence, assignment and other transactions pertaining industrial property rights.

The National Office for Technology Acquisition is charged with the registration of all contracts or agreements for the transfer of foreign technology to Nigerian parties in connection with the use of trademarks, patented inventions and other relevant matters (**section 4 of the NOTAP Act**). NOTAP is also expected to monitor the execution of such contracts or agreements registered with it.

3.0 Conclusion/Summary

Bear in mind that **intellectual Property Laws are territorial in nature**. This means that in the absence of suitable frameworks for bilateral and multilateral cooperation, the laws apply and have effect only within the limit of the **territorial jurisdiction** where they are promulgated. However, Intellectual Property products such as music, films, books, goods and services are not enjoyed within municipal boundaries, but across the region and at global level. In response to this need, international cooperation to set minimum standard for protection has taken place on diverse platforms including the World Intellectual Property Organisation (WIPO) and the World Trade Organisation (WTO), under whose auspices Trade Related Aspects of Intellectual Property (TRIPS) agreement were concluded. Some of the municipal institutional frameworks for Intellectual Property Rights include National Broadcasting Commission, National Film and Video Censors Board, Consumer Protection Council, National Office of **Technology Acquisition and Protection among others**.

4.0 Self-Assessment Questions

1. List 4legal and institutional frameworks for Intellectual Property Rights Administration in Nigeria.
2. Copyright Act, the Patent and Designs Act, the Trademarks Act and National Film and Video Censors Board Act. National Broadcasting Commission, National Film and Video Censors Board, Consumer Protection Council and National Office of Technology Acquisition and Protection.
3. Discuss the statutory and institutional frameworks for administration of Intellectual Property Rights in Nigeria.

5.0 Additional Activities (Videos, Animations &Out of Class activities) e.g.

a. Visit U-tube addhttps://bit.ly/2wv05mb, https://bit.ly/2HN91JS. Watch the video & summarise in 1 paragraph

b. View the animation on add/site https://bit.ly/2XXChYi& https://bit.ly/2LCcA8M and critique it in the discussion forum

6.0 References/Further Readings

Oyewunmi, A. O. (2018) *Nigerian Law of Intellectual Property*. University of Lagos Press, Lagos.

Olwan, R. and Fitzgerald, B (2012) *Intellectual Property and Development – A*

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Study Session 3

Emerging Development and the Future of Nigerian Intellectual Property Law

Section and Subsection Headings:

Introduction
1.0 Learning Outcomes
2.0 Main Content
2.1- Emerging Development and the Future of Nigerian Intellectual Property Law
2.2- International Responses to Digital Technology and Copyrights
2.3- Basic Principles of Copyright
3.0Study Session Summary/Conclusion
5.0 Self-Assessment Questions
5.0 Additional Activities (Videos, Animations &Out of Class activities)
6.0 References/Further Readings

Introduction:

Still on intellectual property law, in this session, we shall be dwelling on the emerging developments and the **future of Nigerian intellectual property law**, international responses to digital technology and the basic principles of **copyright**.

1.0 Study Session Learning Outcomes

After studying this session, I expect you to be able to:

1. Explain the emerging development and future of Nigerian intellectual property law.
2. Discuss the international responses to digital technology and the basic principles of copyright.

Fig 2.3.1: Nigerian Property Intellectual Law

2.0 Main Content

2.1Emerging Development and the Future of Nigerian Intellectual Property Law

The acts of creation, reproduction and dissemination of **intellectual property** works are largely influenced by technology. This is with regards to digital technology, which refers to the use of computers that can accept and interpret digital data and encompasses computer hardware, software and the internet. Digital technology exerts far reaching impact on **intellectual property** because of its peculiar characteristics of easy replication, transmission, modification and manipulation. On the **copyright** arena, it raises issues related to **protection of copyright** works from unauthorised online exploitation, as well as mechanisms for the control and monitoring of works in digital environment.

The emergence of digital technology has impacted the delicate **copyright** balance in a variety of ways. On the one hand digital technology and the emergence of electronic networks present an opportunity to advance public interest by promoting access to e-libraries and other repositories of knowledge and information for scholarship and research. Digital electronic networks have the characteristics of ease of transmission and possibility of simultaneous use by multiple persons, as well as unprecedented search and link capacities. These attributes have rendered irrelevant geographical boundaries and territorial limitations to access and if properly harnessed, can help to overcome the knowledge divide that exists between the developed and the less developed countries.

On the other hand, digital technology poses new challenges to **copyright** owners with regards to unauthorised offloading and dissemination of works and the attendant loss of control over the use and exploitation of such works

Fig 2.3.2: International Responses to Digital Technology and Copyrights

in the online environment. Such uncontrolled exploitation may threaten the economic and moral **rights of copyright** owners thereby discourage investment of time and effort in creative enterprise to the disadvantage of the society at large. Beyond piracy of CDs and DVDs, Nigerian films are digitised and distributed online to a global audience.

2.2International Responses to Digital Technology and Copyrights

The **World Intellectual Property Organisation** (WIPO) has put in place two measure treaties – the WIPO **Copyright Treaty** (WCT) and the WIPO Performance Phonograms Treaty (WPPT) (commonly referred to as the Internet Treaties). The WCT applies to authors of literary and artistic works while the WTTP is applicable to performance and producers of phonograms (article 1 of the WCT and article 3 of the WPPT).

a. **Key Provisions of the WIPO Copyright Treaty (WCT)**

i. **Computer Programs and Data Protection**

The WCT provides for the protection of computer programs which are to be protected as literary works, and compilation of data or other materials which by reason of the selection or arrangement of their content constitute intellectual creations (article 4 and 5 of the WCT, section 51 of the **Copyright** Act). In the digital environment, the protection and compilations of data has assumed increased importance because the assembly of facts, data and other public domain materials which are of critical importance to education, business, governance, health and other sectors has become big business attracting the investment of time, money and effort in the gathering and assembly of such data. Once assembled, this **proprietary** information can be easily accessed, copied, manipulated and commercially utilised by competing businesses or organisations, with an unfair advantage to the compiler of the data. This in turn creates disincentives to invest in development and maintenance of high quality data bases.

ii. **Protection of Rights of Distribution, Rental and Communication to the Public**

The WCT provides for the recognition of the rights of distribution, rental and communication to the public. These are critical to the exercise of

control by the right owners over the exploitation of their works in the digital environment.

iii. **Copyright Limitations and Exceptions**

Article 10 of the WCT provides that contracting parties may, in their national legislation provide for limitation of exception to the right granted to authors of literary and artistic works under the treaty. By virtue of this, existing limitations and exceptions such as those relating to educational or research use, news report, etc. may therefore be extended to digital environment subject to compliance with the three step test. The three step test permits limitations and exceptions only in certain special cases that do not conflict with a normal exploitation of the work and do not unreasonable prejudice the legitimate interest of the author (article 10 of the WCT and 16 of the WPPT).

In developing countries like Nigeria, public interest concerns to provide access to knowledge for education and research purposes, for the disabled, visually impaired, for reporting of current event, for use of newspaper and other articles by the media, for critique and other related policy areas ought to enjoy priority attention.

iv. **Technological Protection Measures**

Technological Protection Measures afford right owners the means to control their works in the digital environment in order to guard against online piracy and other unauthorised exploitation. The WCT makes provision for the effective safeguarding of **copyright** works in digital environment against acts which may sabotage the effort of the right holders to protect their works.

v. **Rights Management Information**

The WCT requires protection of electronic rights management information. This is defined as information which identifies the work, the author of the work, the owner of any right in work, and any numbers or codes that represent such information, when any of these items of information is attached to a copy of the work or appears in connection with the

communication of a work to the public. The purpose is to identify a work as having been authored by the person indicated. Interference with such information by way of removal, modification or other alteration is to be taken seriously as infringement of the moral right of the author. Member states of WCT are required to provide adequate and effective legal remedies against any person who knowingly or deliberately, without authority, removes or alters any electronic rights management information. The distribution, importation for distribution, broadcast or communication to the public of works knowing that the electronic rights management information of such work has been removed or altered are also prohibited (article 12(2) WCT and 19 WPPT).

b. **Digital Technology and the Nigerian Copyright Regime**

The Copyright (Optical Discs Plants) Regulations No. 66 of 2006 provide the framework for the monitoring and control of the production, importation and exportation of optical discs as well as their production parts, raw materials and manufacturing equipment. The regulations require manufacturers of optical discs in Nigeria and those engaged in their exportation, importation and duplication to register with the **Nigerian Copyright Commission** prior to the commencement of their operations (paragraphs 1, 2 and 3 of the Regulations). The sale or distribution of unmarked optical discs as well as the forgery or false applications of a code to an optical disc are all prohibited under the Regulations (paragraph 5 of the Regulation). These regulations provide in Nigeria, a means of controlling reproduction of optical disc outside of approved channels.

ITQ 1: *In what ways the emergence of digital technology impacted the copyright balance?*

ITA: *Digital technology presents opportunity to advance public interest by promoting access to e-libraries and information for scholarship among others. Conversely, it also poses new challenges to copyright owners with regards to unauthorised off loading and dissemination of works and attendant loss of control and exploitation of such works in online environment.*

2.3Basic Principles of Copyright

Copyright protects a wide range of works and has developed since its early beginnings as an important **intellectual property rights**. The practical development of copyright has been supported by the judges who have been

sympathetic to the principle of protecting the results of a person's skill, effort or judgment; what is worth **copying** is prima facie worth protecting.

Copyrights mean the right to make copies of a work. It provides a system exclusive rights for creative works or authorship, such as literary, artistic and musical works as well as entrepreneurial rights relating to exploitation of these works. Under the law, the owners of works are entitled to exclude or at least dictate the terms under which others may use the works concerned. **Copyright**is declared to subsist in the following works:

i. original literary, dramatic, musical or artistic works;
ii. sound recording, films or broadcasts; and
iii. typographical arrangement of published editions

Databases may also be protected by a **right** known as the database right which can be described as a right related to **copyright.** The database right was introduced as a means of protecting data bases that are the result of substantial investment even though they might not otherwise meet the requirement for **copyright protection**.

a. **Owners and Authors**
   The owner of the **copyright** in a work is given the exclusive right to do certain specified restricted acts in relation to the work. The basic rule is that the first owner of a copyright is the author of the work (the person creating it). A major exception applies in the case of a work made by an employee in the course of his employment. Here, the employer will be the first owner of the **copyright** unless otherwise agreed.

b. **Duration of Copyrights**
   Regardless of who the present owner of the **copyright** is, the identity of the author is important because the duration of **copyright** in original literary, dramatic, musical or artistic works is determined by the life of the author, irrespective of ownership. The **copyright** in such works last for seventy years from the end of the calendar year during which the author dies. In USA, the duration is life plus seventy years.

c. **The Acts Restricted by Copyright**
   Copyright functions by granting specific **rights** to the owner of the work: only the **copyright** owner is allowed to perform, or authorised others to

perform, certain types of activities in relation to copyright works. The following are the acts restricted by the **copyright** and only the owner can do or authorise others:

i. to copy the work;
ii. to issue copies of the work to the public;
iii. to rent or lend the work to the public;
iv. to perform, show or play the work in public;
v. to communicate the work to the public;
vi. to make an adaptation of the work or do any of the above in relation to an adaption.

d. **Infringements**

A person infringes the **copyright** in a work if it does one of the restricted acts, or authorises another to do one of the acts in relation to a substantial part of the work without the permission of the **copyright** owner and such a person may be sued by the **copyright** owner or an exclusive licensee of the owner of the **copyright**. To prove **copyright** infringement by **copying**, all the following four questions must be answered in the affirmative:

i. Is the plaintiff's work protected by **copyright**?
ii. Has the plaintiff has the entitlement to sue as the owner or licensee of the copyright?
iii. Has the defendant copied from the plaintiff's work?
iv. Does that part of the plaintiff's work copied represent a substantial part of the plaintiff's work?

e. **Exceptions to Infringement and the Permitted Acts**

There are some defences to **copyright** infringement at common law, such as public interest and where the copyright owner has acquiesced in the infringement. For example, it might be in the public interest to copy information concerning a computer virus for circulation to the appropriate authorities and organisations. The same would apply to **copying** materials, such as e-mail correspondence between two organisations engaged in illegal price fixing, to send to the appropriate authority. Acquiescence would apply where **copyright** owner impliedly consented to an infringement he later complained about. Another defence is estoppel, being where a **copyright** owner with full knowledge, encouraged and allowed someone to carryout infringing acts in relation to his **copyright** work.

Permitted acts may include situation where a person lends his paper copy of a novel to his friend to read, this does not infringe **copyright** as lending a book to a friend is not a restricted act; where a person copies out a few paragraphs from the novel (copying few paragraphs are unlikely to be considered substantial part of the novel); where a student copies a few pages from a journal for the purpose of his own private study (the student can rely on the permitted act of fair dealing for research or private study even where the **copying** is substantial); or where a person decides to record an entire television program broadcast at a time so that he can watch it later at his convenience.

There are additional ways of infringing **copyright**, known as secondary infringements, which apply where someone is dealing in infringing copies such as selling unauthorised copy of the materials and there are also some criminal offences which carry penalty of term of imprisonment and/or fine. Distributing an article which is an infringing copy of a work of copyright to such an extent as to prejudicially affect the owner of the **copyright** is a secondary infringement and a **criminal offence**.

f. **Remedies for Infringement**

If the owner of a **copyright** successfully sues a person for **infringement** of that **copyright,** there are a number of potential remedies available. In particular, an injunction, damages or as an alternative to damages, an account of profits might be appropriate. **Copyright damages** may be assessed as the estimated loss resulting from the infringement. Damages are not available if the defendant did not know or had no reason to believe that the work was protected by **copyright**. Injunctions are important because they prevent a continued or anticipated infringement of copyright. An injunction is a court order requiring the defendant to do something a refrain from doing something.

It is important to appreciate **that copyright is a property right** and it can be dealt with as with other forms of property. It can be sold or licences may be granted in respect of it. It can even be used as security for a loan. Often, the owner of a **copyright** would want to use someone to exploit that **copyright** for him. It might be more attractive financially to use an established

publisher to market and sell copies of the work because the letter will have the marketing expertise and distribution facilities necessary to sell the work in large numbers.

g. **Copyright in the Information Society**
All manners of work can be stored and made available electronically. Literature, music, works of art, audio visual works and industrial designs can all be representing in digital form. Three dimensional works and moving images can be expressed digitally and using appropriate software, displayed on screens, copied, manipulated or transmitted anywhere in the world at the touch of a button. The ease with which all forms of creative expression can be exploited digitally has far reaching consequences as regards dissemination of information. The internet and tangible media such as DVDs and CDs can expose works of publishers to a massive worldwide consumer audience. **Copyright** and related **intellectual property rights** may be used negatively so as to prevent the dissemination of information for example by threatening intermediaries such as internet service providers with copyright infringement actions or by obtaining injunction against them, an example of this involve the Church of Scientology who took legal action against a former member of the Church who posted on the internet extract of the writings of the founder of the Church. The service provider was threatened with legal action if it did not remove the extracts. The law has to reach a balance between freedom of expression and other rights where the two impinged.

In-text Question
Mention the Acts Restricted by Copyright
Answer
1. to copy the work;
2. to issue copies of the work to the public;
3. to rent or lend the work to the public;
4. to perform, show or play the work in public;
5. to communicate the work to the public;
6. to make an adaptation of the work or do any of the above in relation to an adaption.

3.0 Conclusion/Summary

The emergence of digital technology has impacted on **copyrights** in a variety of ways. Digital electronic networks have the ease of transmission and possibility of

simultaneous use by different persons. Digital technology poses new challenges to **copyright** owners with regards to unauthorised use and exploitation of works and the attendant loss of control over such works. Basic principles of **copyrights** deal with issues of owners and authors, duration of copyrights, restricted acts, infringements, exception to infringements and remedies to such infringements.

4.0 Self-Assessment Questions

1. What are the remedies of for infringement of **copyrights**?
2. Discuss the international responses to digital technology and the basic principles of **copyright**.
3. Discuss the key provisions of the **World Intellectual Property** Organisation (WIPO) **copyright treaty**.
4. Identify and explain the acts restricted by **copyrights** which only the owner can do or authorise others to do.
5. Examine the role of internet in information management.
6. Remedies for **copyrights** infringement may lie in damages resulting from loss or injunction for continued or anticipated infringement.

5.0 Additional Activities (Videos, Animations &Out of Class activities) e.g.

a. Visit U-tube add https://bit.ly/2XjF5uj. Watch the video & summarise in 1 paragraph

b. View the animation on add/site https://bit.ly/30Q0nBe& https://bit.ly/2YgWA25 and critique it in the discussion forum

6.0 References/Further Readings

Oyewunmi, A. O. (2018) *Nigerian Law of Intellectual Property*. University of Lagos Press, Lagos.

Olwan, R. and Fitzgerald, B (2012) *Intellectual Property and Development – A Road Map for Developing Countries in the 21st Century.* NIALS Journal of Intellectual Property, Vol. 1 No. 2.

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Study Session 4

Review of Case Laws

Section and Subsection Headings:

Introduction
1.0 Learning Outcomes
2.0 Main Content
    2.1- Review of Case Laws
3.0Study Session Conclusion/Summary
4.0 Self-Assessment Questions
5.0 Additional Activities (Videos, Animations & Out of Class activities)
6.0 References/Further Readings

Introduction:

In this session, you will learn about the case law principles of the contents above.

1.0 Study Session Learning Outcomes

After studying this session, I expect you to be able to:

1. Discuss the case law principles about the subject matters examined above.

2.0 Main Content

2.1Review of Case Laws

1. L. A. Gear Inc. v. Hi-Tech Sports Plc (1992) FSR 121
2. NWL Ltd. v. Woods (1979) 1 WLR 1294
3. Sunny Music Entertainment (UK) Ltd. v. Easy Internet Café Ltd. (2003) EWHC 62
4. Eldred v. Ashcroft, Attorney General (2003) 537 US 186
5. University of London Press Ltd. v. University Tutorial Press Ltd. (1916) 2 CH 601
6. Kantor Fistzgerald International v. Tradition (UK) Ltd. (2000) RPC 95
7. Designers Guild Ltd. v. Russel Williams (Textiles Ltd.) (2001) FSR 113
8. Microsoft Corporation v. Fanike Associates Ltd. (2012) 3 NWLR (pt. 1287) 301

9. OladipoYemitan v. Daily Times of Nig. (1980) FHCL 186
10. Island Records Ltd. v. Pandom Technical Sales & Services (1993) FCLR 318

Module 3

Contents:

Study Session 1: Fundamental Rights and Right to Freedom of Expression
Study Session 2: History, Definition and Nature of Freedom of Information
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Study Session1

Fundamental Rights and Right to Freedom of Expression

Section and Subsection Headings:

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2.0 Main Content
    2.1- Fundamental Rights
    2.2- Right to Freedom of Expression and Press
    2.3- Restrictions on the Freedoms
3.0 Study Session Summary/Conclusion
5.0 Self-Assessment Questions
6.0Additional Activities (Videos, Animations & Out of Class activities)
6.0 References/Further Readings

Introduction:

In this study session, you will learn about **fundamental rights, freedom of expression and restrictions** to the exercise of such **rights**.

1.0 Learning Outcomes

After studying this session, I expect you to be able to:

1. Critically consider the right guaranteed under section 39 of the Constitution of the Federal Republic of Nigeria 1999.

2.0 Main Content

2.1 Fundamental Rights

The **fundamental rights** for Nigeria were demanded in the Minorities Commission Report (MCR) of 1957 and thereafter the demands for these **rights** were made in the Constitutional Conferences of 1957 and 1958. Many of the **fundamental rights** as proposed by the Minorities Commission were before the Constitutional Conferences and it was agreed by the British Government that they will be incorporated in the 1960 Constitution under which Nigeria was to be granted independence. Consequently, the fundamental rights were incorporated for the first time in the 1960 Constitution although previously the British Government tried to incorporate some of the human rights in various statutes and legislation.

Thereafter these **fundamental rights** came to be repeated in successive constitutions with little changes.

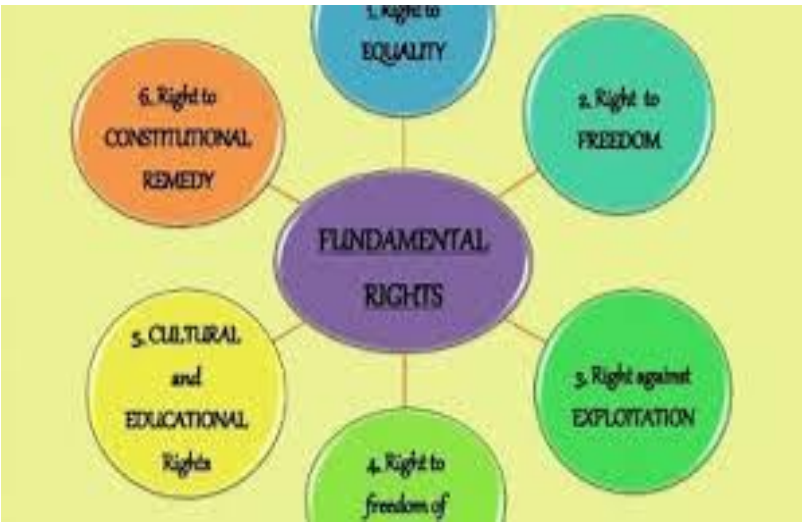

Fig 3.1.1: Fundamental Rights

The **fundamental rights** concept is derived from the idea that man is entitled to certain **rights** as a human being and for living a free and meaningful life. According to one theory as advocated by Locke, the **human rights** are what a man possesses in his natural condition and when he enters a civil society he contracts to give up part of his power to the government of the state with the condition that the state so constituted shall protect the **natural human rights** of the individuals and when the state violates these trusts of the people, the people have the right to take the power from the government and invest it in some other governments. The human rights were regarded as an irreducible minimum which an individual must have and the state cannot violate or encroach on those rights.

The **fundamental rights** guaranteed in the Nigerian Constitution are not in absolute terms but have been limited or restricted to various grounds that represent the interest of the society and the state. **Fundamental rights** can be meaningfully enjoyed by individuals only in a society which is democratic, practices rule of law and the government of which is responsive to public opinion. Authoritarian governments cannot adjust themselves to the ideal of protecting human rights, because under such government, everything is subordinated to the maintenance of the group in power.

2.2Right to Freedom of Expression and Press

Section 39 of the 1999 Constitution provides for **freedom of expression**. It says every person is entitled to **freedom of expression**, including freedom to hold opinions and to receive and impart ideas and information without interference. For imparting ideas and information, it is necessary that an individual should have the right to adopt any media whatsoever. The **freedom of expression** can be exercised orally, in writing, through press or through electronic media. Hence, section 39 further provides that the **freedom of expression** extends to owning, establishing and operating any media whatsoever. As far as radio and television are concerned, they can be owned, established and operated by the government or any person or body so authorised.

The right under this section may be restricted as well as it is provided in section 45. The scope of the freedom of press is not different from the freedom of expression of the individual. A person may express his opinion or convey information he has by any means available to him. The **expression** can be through words, in writing, in painting, drawing, sculpture or even through signs and gestures. The **expression** in writing may be in the form of letter, articles, bills, pamphlets, newspapers or any other written form. The ideas and opinions that a person is free to hold may also relate to any subject matter, social, economic, political, cultural, moral, ethical, religious etc. The right has also been extend to receive as well as impart ideas and information.

The right to receive generally may be in the negative form in that there can be no restriction preventing a person from receiving a particular idea or information. But so far as the government is concerned, it may take a positive form of obligation on the government to inform the public on time, the state of affairs in matters of

public life, the working of the government and also everything that is possible to keep the public informed about. The right has also been extended to the imparting ideas and information. The ideas and information may be imparted through education in educational institution or by advocating them through lectures, seminars, speeches, indoor or outdoor as may be necessary.

In **Archbishop Okogie v. AG Lagos State (1981) 1 NCLR 218** and **Adewole&Ors v. Jakande (1981) 1 NCLR 262**, the courts held: that the word "media" is not limited to the press, but includes any medium for imparting and receiving information and it includes schools and that the right to freedom of expression and the press includes the right to own a private school to receive and impart ideas and information without interference. The right to liberty of expression and the press means two broad things:

1. **Right to freedom** from prior censorship or restraint of publication
2. But not freedom from the legal consequences of an unlawful, criminal, mischievous or defamatory publication.

In the words of the English Jurist, Sir Blackstone (1723 - 1780): "the liberty of the press is indeed essential to the nature of a free state; but this consists in laying no previous restraints upon publication, and not in **freedom** from censure for criminal matter when published. Everyman has an undoubted right to lay what sentiments he pleases before the public; to forbid this, is to destroy the freedom of the Press: but if he publishes what is improper, mischievous, or illegal, he must face the consequences of his temerity."

The right to freedom of expression and the press as guaranteed in the constitution is prima facie sufficient to protect the press. Comparatively, though in the United States press **freedom** is provided in absolute words to the effect that "Congress shall make no law abridging the **freedom** of the Press." Yet in practice and in reality there are statutory enactments which limit press freedom. Thus, the constitutional provision whilst permitting free speech does not provide immunity for every possible use of language.

2.3Restrictions on the Freedoms

Freedom of expression can be restricted by a law which is reasonably justifiable in a democratic society.

a. For the purpose of preventing the disclosure of information received in confidence, that is, classified matters or official secrets.
b. For the purpose of maintaining the authority and independence of the courts, that is, the law of contempt of court.
c. The restriction may be imposed upon public officers and members of the armed forces and police from divulging classified information or official secret they received in course of service to the nation.
d. In the interest of defence.
e. Public safety.
f. Public order.
g. Public morality (prohibiting obscenity and harmful publication).
h. Public health.
i. For the purpose of protecting the rights and freedom of other persons, e.g. defamation and other harmful publications.

By ethics of profession, a journalist is not to disclose his source of information, however, under the constitution, disclosure may be required in the interest of the State, such as in interest of defence, public safety, public order, etc. where a journalist is required to disclose his source of information in the interest of the State, he withholds such information at his own risk.

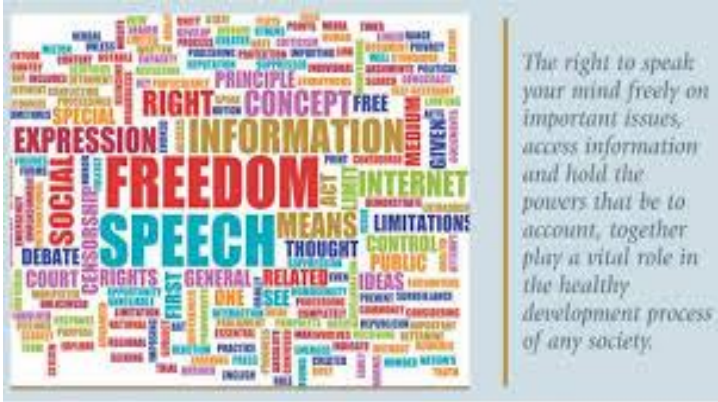

Fig 3.1.2: Restrictions on the Freedoms

At Common Law, only four relationships enjoy the non-disclosure of information that has been received in confidence. These classes of persons enjoy privilege and cannot be compelled at law to disclose information against the other. They are:

a. Lawyer and clients
b. Wife and husband

c. Informant and government
d. Juror and Juror

The courts are usually suspicious of laws which impose restraints on freedom of expression prior to publication including laws requiring permits before public assembly and speeches can be made. The courts strictly interpret such laws to see that they must be laws that are reasonably justifiable in a democratic society.

ITQ: *List the restrictions to freedom of expression and press.*

ITA: *a) Prevention of disclosure of information received in confidence or official secrets.*
b) For the purpose of maintaining the authority and independence of courts.
c) Restriction on public officers, members of armed forces, police for revealing official secrets.
d) Interest of defence, public safety, public order, public morality, public health and right of others.

3.0 Conclusion/Summary

The summary of what we have been studying in this session is that the **fundamental rights** concept is derived from the idea that man is entitled to certain rights as human being and for living a free and meaningful life. We also saw how the 1999 Constitution provided for **freedom of expression** to the effect that every person is entitled to **freedom of expression**, including **freedom** to hold opinions and to receive and impart ideas and information without interference. The right under section 39 may be restricted under the section as well as it is provided in section 45 of the 1999 Constitution

4.0 Self-Assessment Questions

1. What are fundamental rights?
2. Critically examine the rights guaranteed under section 39 of the Constitution of the Federal Republic of Nigeria 1999.
3. **Fundamental rights**are derived from the idea that man is entitled to certain rights as human being and for living a free and meaningful life. The human rights man possessed in his natural condition and that when he enters a civil society he contracted to give up part of his power to government of the state with the condition that the state so constituted shall protect the natural **human rights** of the individuals and when the state violates these trusts of

the people, the people have the right to take the power from the government and invest it in some other governments.

5.0 Additional Activities (Videos, Animations &Out of Class activities) e.g.

a. Visit U-tube addhttps://bit.ly/2Id6FD5. Watch the video & summarise in 1 paragraph

b. View the animation on add/site https://bit.ly/2HlwqP8&https://bit.ly/2YisCuK&https://bit.ly/2lyJyL8& https://bit.ly/2y4AIrW and critique it in the discussion forum

6.0 References/Further Readings

Malemi, E. (2017) *The Nigerian Constitutional Law*. Princeton Publishing Company, Lagos.

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Study Session2

History, Meaning, Nature and Scope of Freedom of Information

Section and Subsection Headings:

Introduction
1.0Learning Outcomes
2.0 Main Content
2.1- History, Meaning, Nature and Scope of Freedom of Information
2.2- Sources of Freedom of Information Laws
2.3- Importance of Access to Information
2.4- Principles of Disclosure under the FOIA
2.5- The Right to Information under the FOIA
2.6- Obligations of Public Institutions
2.7- Application for a Record
3.0 Study Session Summary/Conclusion
5.0 Self-Assessment Questions
5.0 Additional Activities (Videos, Animations &Out of Class activities)
6.0 References/Further Readings

Introduction:

In this study session, you will learn about the history, meaning, nature and scope of **freedom of information**. You will also learn about the sources of **freedom of information laws**, importance of access to information, principles of disclosure and the right to **information** under the FOIA. Another issue of importance that we shall be studying in this session are the obligations of public institutions and application for records.

1.0 Learning Outcomes

After studying this session, I expect you to be able to:

1. Discuss the history, definition and nature of **freedom of information**.
2. List and discuss international, regional and municipal legal instrument on access to information.
3. Explain the scope of right of access under the FOIA, the concept of Applicant and Public Institution.

2.0 Main Content

2.1History, Meaning, Nature and Scope of Freedom of Information

The first form of **freedom of informationlaw** was enacted in Sweden in 1766, followed by other nations like Finland (1951), United States (1966 and 1976), Norway (1970). By 2013, about 95 countries in the world were estimated to have enacted one form of **freedom of information law** or another.In Africa, the emergence of **freedom of information laws** may be ascribed to the work of the African Commission on Human and Peoples' **Rights**. At least 9 countries on the continent are known to have enacted access to information laws.

The Nigeria's version of the access to **information laws** – **Freedom of Information** (FOI) Act was enacted in 2011. The Act is a product of intense consultation between the civil society and the Government of Nigeria.

Access to **information** entails the right of the people to seek access and receive **information** from concerned authorities. It encompasses the core principles of democratic governance: participation, transparency and accountability.

In Nigeria, the FOI Act secures the right of any person to access or request **information** in any format that is in the custody, possession of any public official, agency or institutions. The Nigeria FOI Act gives recognition to public officials, agencies and institutions and private companies

Fig 3.2.1: Nature and Scope of Freedom of Information

utilising public funds, providing public services or performing public functions for the purposes of access to information by the people (Section 2(7) and 31 of the FOI Act).

The need for **freedom of information** stems from the fact that it is an important tool for the people to enjoy some other rights. With **freedom of information**, people may seek and obtain **information** on service delivery, impact of environmental or developmental activities in their neighbourhood and governance issues. Section 1(1) of the FOIA provides that the FOIA should enjoy supremacy over other anti-disclosure statutes such as Official Secrets Act (Cap. 03 LFN 2004), the Criminal Code Act (Cap. C38 LFN 2004), the Penal Code Act (Cap. P3 LFN 2004), the Evidence Act (Cap. E14 LFN 2004), the Public Complaint Commission Act (Cap. P37 LFN 2004) and the National Security Act (Cap. N74 LFN 2004).

2.2Sources of Freedom of Information Laws

a. **International legal regimes**
   i. The Universal Declaration of Human Rights (UDHR), 1948 (Article 19).
   ii. International Covenant on Economic, Social and Cultural Rights (Article 12 & 13).
   iii. African Charter and Human and Peoples' Rights (Article 9(1) & (2).
   iv. The African Declaration of Principles on Freedom of Expression.
   v. Model Law on Access to Information for Africa.

b. **The Constitution of Federal Republic of Nigeria**
   Recognises the right to freedom of expression short of guaranteeing a right to **freedom of information**.

c. **Statutes:** such as African Charter on Human and Peoples' Rights Act (Cap A9 Law of the Federation of Nigeria (LFN), 2004), the National Water Ways Authority Act 1996, the Environmental Impact Assessment Act (Cap E12 LFN, 2004), FOI Act 2011, Fiscal Responsibility Act 2007 etc.

2.3 Importance of Access to Information

i. It is a vital tool for governance, development and social transformation.

ii. It is a tool for empowerment and eradication of poverty.
iii. It helps to promote free flow of **information** between people, civil society, government and public institution.
iv. It promotes citizens participation.

In-text Question
List the sources of freedom of information laws

Answer
1. International legal regimes
2. The Constitution of Federal Republic of Nigeria

2.4Principles of Disclosure under the FOIA

a. Disclosure obligation or answering application for **information** promptly is shared responsibility within the relevant institutions.
b. People in the institution and members of public to know who is responsible for dealing with application for **information** under the Act.
c. Transfer without delay of any request for **information** which is not your responsibility.
d. Keep and maintain records in a way that helps in ensuring that **information** or records can be effectively preserved, identified and retrieved.
e. Remember that the seven (7) day time limit begins as soon as a request for information is received by public institution.
f. The FOIA is applicable to all institution, legislative, executive, judicial, administrative, advisory body of the government, boards, committees or commissions of the state, companies in which the government has controlling interest, private bodies providing public services, performing public functions or utilizing public funds (sections 2(7), 29(9) and 31 of the FOIA).

Fig 3.2.2: The Right to Information under the FOIA

2.5The Right to Information under the FOIA

Any person has the right to apply for information or records in the possession of public institution. These rights are:

a. Right to access or request for any **information** or records in the custody of any public institution or private bodies providing public services or utilizing public funds.
b. Right to be told where the **information** or records exist.
c. Right to have the requested **information** or records released if in the custody of the public institution.
d. Right not to demonstrate any specific interest in the requested **information/records**.
e. Right to receive **information** that public institution are obliged to disclose under the Act.
f. Right to take legal action in court. To compel any public institution to comply with the provisions of the Act.

2.6 Obligations of Public Institutions

a. The primary aim of the FOIA is to provide access to **information/records** in the custody of public institution/government.
b. Obligation to keep organised and maintain records in line with the public access objectives of the FOIA.
c. Proactive disclosure of **information** by public institution (section 2(3) of the FOIA).

2.7Application for a Record

The FOIA is designed in such a way that anyone can bring a request for **information** under the Act. Since applications are expected to be in writing, where an applicant is an illiterate, such applicant can make the request orally to the authorised government official who is expected to reduce the application into writing (sections 1(2), 3(4) and 1(3) of the FOIA). Application under FOIA does not need to be made in writing and an applicant does not need to demonstrate any specific interest or motive in the **information** applied for. Request for **information** can be provided without any question such as recruitment brochures, leaflets, press releases, text of public speeches.

Response to any application for **information** shall be made within seven (7) days. The seven (7) days commences on the day after the FOIA application is received by the public institution. In counting seven (7) days, any holiday shall be left out in computation of the period. Holiday means a day which is a Sunday or a public holiday (section 15 Interpretation Act). Failure to respond within the time limit

raises a presumption of refusal which can lead to litigation (section 7(4) FOIA). The fee chargeable under the FOIA is limited to standard charges to photocopy and transcribe where necessary. The FOIA does not authorise imposition of an administrative fee to cover the manpower cost of researching and collating requested **information**.

In-text Question
Explain the principles of disclosure under the FOIA
Answer

1. *Disclosure obligation or answering application for information promptly is shared responsibility within the relevant institutions.*
2. *People in the institution and members of public to know who is responsible for dealing with application for information under the Act.*
3. *Transfer without delay of any request for information which is not your responsibility.*
4. *Keep and maintain records in a way that helps in ensuring that information or records can be effectively preserved, identified and retrieved.*
5. *Remember that the seven (7) day time limit begins as soon as a request for information is received by public institution.*

3.0 Conclusion/Summary

From all that we have said in this session, I hope you still remember that by ethics of profession, a journalist is not to disclose his source of **information**, however, under the constitution, disclosure may be required in the interest of the State, such as in interest of defence, public safety, public order, etc. I also pointed out that the significance of access to **information** lies in its tool for governance, development and social transformation as well as for empowerment and eradication of poverty and promotion of citizens' participation.

4.0 Self-Assessment Questions

1. List the international, regional and municipal legal instruments on access to information.
2. Discuss the history, definition and nature of **freedom of information**.
3. Explain the scope of right of access under the FOIA, the concept of Applicant and Public Institution.
4. The Universal Declaration of Human Rights (UDHR), 1948, International Covenant on Economic, Social and Cultural Rights, African Charter and Human and Peoples' Rights, the African Declaration of Principles on

Freedom of Expression and Model Law on Access to **Information** for Africa. The Constitution of Federal Republic of Nigeria, African Charter on Human and Peoples' **Rights** Act, the National Water Ways Authority Act 1996, the Environmental Impact Assessment Act, FOI Act 2011, Fiscal Responsibility Act 2007 etc.

5.0 Additional Activities (Videos, Animations &Out of Class activities) e.g.

a. Visit U-tube addhttps://bit.ly/2wuqQqz , https://bit.ly/2EYiWe3. Watch the video & summarise in 1 paragraph

b. View the animation on add/site https://bit.ly/2YbUqMV&https://bit.ly/30Isn9M& https://bit.ly/2Z7aYqG and critique it in the discussion forum

6.0 References/Further Readings

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Study Session3

Exemptions under the FOI Act

Section and Subsection Headings:

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2.2- Refusal of Access to Information
2.3- Redress Mechanisms Under the FOIA
3.0 Study Session Conclusion/Summary
5.0 Self-Assessment Questions
5.0 Additional Activities (Videos, Animations &Out of Class activities)
6.0 References/Further Readings

Introduction:

You are welcome to another study session, which also happens to be the last in this course. Here, you will learn about **exemptions** under the **FOI Act**, refusal of access to **information** and redress mechanisms under the **Freedom of Information Act.**

1.0 Learning Outcomes

After studying this session, I expect you to be able to:

1. Explain the meaning of exemptions and discuss types, purpose and effect of exemption.
2. List and discuss the test for the application of exemption under FOIA.

2.0 Main Content

2.1Exemptions under the FOI Act

I want to believe that you must have heard it before this time that constitutional **rights and freedoms** are not absolute. This implies that every right and freedom has some kind of limitations attached to them. These limitations are boundaries set or necessitated by the need to protect the rights of others or the interest of the public as a whole. **Exemption** is a form of limitation or preferential treatment approved by law. It is an official permission not to do something which otherwise you would have been legally bound to do.

If the piece **of information is exempt**, it means that for members of the public, they do not have a right of access to that **information**. For public institutions, it means they do not have an obligation to disclose such information. Note that no **information** in the custody of any public institution in Nigeria can be withheld from a court of law on any ground (section 22 FOIA). The Act recognises that there are occasions where disclosure of information is inappropriate. These exemptions can be classified into two types.

Fig 3.3.1: Exemptions under the FOI Act

In-text Question
What is Exemption?

Answer
Exemption is a form of limitation or preferential treatment approved by law. It is an official permission not to do something which otherwise you would have legally bound to do.

1. **Unqualified Exemptions**
   This refers to absolute **exemption.** These class of exemptions may be relied upon by a public institution to deny FOI request, regardless of whether the public interest outweighs the injury the disclosure may cause. Here, the **information** or record is exempt from disclosure. There is discretion to

disclose (section 15(2), 16 and 17 of the FOIA). For instance, public institutions may deny application for any **information** that is subject to legal practitioner/client privilege, health worker/client privilege, journalism confidentiality privileges and other professional privilege recognised by law.

2. **Qualified Exemptions**

Qualified exemption applies to the class of **information** which may be denied by a public institution only after considering and satisfying the Public Interest Test. Sections 11, 12, 14, 15(1) and 19 are qualified exemptions which demands that once **information** is covered by these exemptions, the public interest test must be considered. Qualified exemptions under the **FOIA** are injury based exemption, which apply if disclosure will cause injury to the specified purpose of the exemption. E.g. injury to the conducts of international affairs under section 11.

An application for **information** shall not be denied where the public interest in disclosing the **information** outweighs the injury or harm stated in the exemption. For example, request for **information** may be denied if the information requested pertains some pending law or administrative enforcement proceedings, deprives a person a fair trial, breaches confidentiality between parties, violates personal privacy, obstructs on-going criminal investigation or facilitates the commission of a crime.

(i) Exempt situation where there is a discretion to disclose

Sections 11, 12, 16, 17 and 19 provide a public institution to disclose the record or **information** despite the fact that the public interest in disclosure does not outweigh the injury or harm stated in the **exemption**.

(ii) Exempt situation where you must not disclose

According to Sections 14 and 15 of the Act, once it is determined that the public interest in disclosure does not clearly outweigh the harm, the public institution must withhold the **information**. However, the public institution must disclose the record if the person who is the subject of a record falling under section 14 or is the third party in question under section 15 consents to the disclosure of the record or the record is publically available.

Tests to be carried out before applying exemption

a. **Test of Engagement**

Before applying an **exemption**, the **exemption** must be engaged. An **exemption** is engaged when the **information** requested relates to any of the items mentioned in the FOIA. In the case of non-injury based **exemption** such as professional privileges, course or research material, test questions, plan for building and library circulation, excluded records, personal **information exemptions**.

b. **Injury Test**

The injury test is not a stand-alone test; it is part of the test of engagement for all injury based **exemptions** such as the **exemption** relating to the conduct of international affairs and defence, law enforcement and investigation, results or products of environmental testing and third party **information**.

c. **Public Interest Test**

The **FOIA** does not define exactly how public institutions should carry out these tests. Public interest is something in which the public, the community at large, has some interest by which their legal rights or liabilities are affected; interest shared by citizens generally in affairs of local, state or national government. **Information** is in the public interest if it serves the interest of the public at large. Factors that may influence public interest in the disclosure of any **information** include the extent to which the **information** is already in the public domain, the need for furthering the understanding and participation in the public debate of issues of the day, promoting accountability and transparency by public authority in the spending of public funds, allowing individuals, companies and other bodies to understand decisions made by public institution affecting their lives and bringing to light **information** affecting public health and safety.

In-text Question

Itemize the two type's exemptions.

Answer

1. *Unqualified Exemptions*
2. *Qualified Exemptions*

2.2Refusal of Access to Information

Section 4 of the **FOIA** places three obligations on a public institution. These are:

a. An applicant is entitled to receive **information** or record he has applied for.
b. If the public institution considers that the application should be denied, it should give a written notice (Refusal Notice) to the applicant informing him that access to all or part of the requested **information** will not be granted.
c. The reason for the refusal of access to **information** must be clearly stated including the relevant provisions of the Act on which the refusal is based.

A public institution may refuse an application for access to information if it is relying upon one or more of the **exemptions** contained in sections 11, 12, 14, 15, 16, 17, 19 and 26 of the FOIA. Apart from the **exemptions** there is no obligation to disclose records that are not held in the custody of the public institution.

2.3Redress Mechanisms Under the FOIA

Where access to information is refused, the **FOIA** provides for remedies to the applicant in order to make right a wrong or make a correction of a wrong such that the public institution can be compelled to provide access to the information requested. The public institution may extend the period of seven (7) days within which to make the information available to the applicant for another seven (7) days, making it not more than fourteen (14) days.

Fig 3.3.2: Redress Mechanisms Under the FOIA

a. **Redress Through the Court**

Section 20 of the **FOIA** provides for a judicial remedy to the effect that any applicant who has been denied access to information, may apply to court for review within thirty (30) days after the public institution denies or is deemed to have denied the application. Section 21 of the Act intends to ensure speedy trial or cases in respect of denial of access to information by providing that an application made under the section shall be heard and

determined summarily without any form of bureaucracy, delay or attention to formality.

b**. Redress Through Administrative Procedure**

Here, the applicant may seek alternative redress through administrative complaints procedure of bodies such as the National Human Rights Commission, Public Complaint Commission, the Legislature (through oversight functions), the Public Service Commission and the utilisation of the internal review mechanisms of the public institutions which refused access to information.

In-text Question

In section 4 of the FOIA, list the three obligation on a public institution

Answer

1. An applicant is entitled to receive information or record he has applied for.

2. If the public institution considers that the application should be denied, it should give a written notice (Refusal Notice) to the applicant informing him that access to all or part of the requested information will not be granted.

3. The reason for the refusal of access to information must be clearly stated including the relevant provisions of the Act on which the refusal is based.

3.0 Conclusion/Summary

Exemption is a form of limitation or preferential treatment approved by law. It is an official permission not to do something which otherwise you would have legally bound to do. **Exemptions** may be unqualified, that is, which may be relied upon by a public institution to deny FOI request regardless of whether the public interest outweighs the injury the disclosure may cause or qualified which must satisfy the public interest test. Redress mechanisms under the FOIA may be achieved through the court or administrative procedure.

4.0 Self-Assessment Questions

1. List the test for the application of **exemption** under FOIA.
2. Test of engagement, injury test and public interest test.
3. Explain the meaning of **exemptions** and discuss types, purpose and effect of **exemption**.

5.0 Additional Activities (Videos, Animations &Out of Class activities) e.g.

a. Visit U-tube addhttps://bit.ly/2EOXY0V , https://bit.ly/2IoTyiv. Watch the video & summarise in 1 paragraph

b. View the animation on add/site https://bit.ly/2Z531m4&https://bit.ly/2JWbaTt& https://bit.ly/2JKuHYk and critique it in the discussion forum

6.0 References/Further Readings

Nwolike, L. I. (2017) *Civil and Criminal Litigation.* Arise and Shine Press, Anambra – Nigeria.

Ojukwu, E. et al (2015) *Freedom of Information Handbook for Law Clinics.* Network of University Legal Aid Institutions (NULAI), Abuja.

Attorney General of the Federation Guidelines on Implementation of the Freedom of Information Act, 2011, Revised Edition 2013.

Freedom of Information Act, 2011

Study Session 4

Review of Cases on Freedom of Expression, Press and Access to Information

Section and Subsection Headings:

Introduction
1.0 Learning Outcomes
2.0 Main Content
2.1- Review of Cases on Freedom of Expression, Press and Access to Information
3.0Study Session Summary/Conclusion
4.0 Self-Assessment Questions
5.0 Additional Activities (Videos, Animations & Out of Class activities)
6.0 References/Further Readings

Introduction:

In this session, you will learn about the case law principles of the contents above.

1.0 Study Session Learning Outcomes

After studying this session, I expect you to be able to:

1. Discuss the case law principles about the subject matters examined above.

2.0 Main Content

2.1Review of Cases on Freedom of Expression, Press and Access to Information:

1. Adikwu v. House of Representatives (1982) 3 NCLR 394
2. Oyegbemi v. AG Federation (1982) 3 NCLR 895
3. Momoh v. Senate (1981) 1 NCLR 105
4. Okogie v. AG Lagos State (1981) 1 NCLR 218
5. Adewole v. Jakande (1981) 1 NCLR 262
6. Amakiri v. Iwowari (1974) 1 RSLR 5
7. People Star Press v. Adebayo (1971) 1 UILR 269
8. AG Federation v. Guardian Newspapers (1999) 9 NWLR (pt. 618) 187
9. Dele Giwa v. IGP Unreported Suit No. M/44/83
10. Lord Advocate v. Scotsman Publication Ltd. (1989) 2 All ER 852
11. FRN v. Thompson &Irabo Unreported Suit No. POPT/L/1/84

12. Atake v. President of Nigeria (1982) 11 SC 153
13. Secretary of State for Defence v. Guardian Newspapers (1984) 3 All ER 601
14. X Ltd. v. Morgan Grampian Publishers (1990) 1 WLR 57
15. New York Times v. United States (1979) 403 US 713
16. Musa v. INEC (2002) 11 NWLR (pt. 778) 223
17. Otitoju v. Government of Ondo State (1994) 4 NWLR (pt. 340) 518
18. Osawe v. Reg. of Trade Unions (1985) 1 NWLR (pt. 4) 755
19. Anigboro v. C Trucks Nig. Ltd. (1995) 6 NWLR (pt. 399) 35
20. Agbai v. Okogbue (1991) 7 NWLR (pt. 204) 301
21. Fawehinmi v. NBA (1989) 2 NWLR (pt. 105) 558
22. Public & Private Dev. Centre Ltd. v. PHCN Suit No. FHC/ABJ/CS/582/2012
23. Uzoegwu F.O.C. Esq. v. CBN & Anor Suit No. FHC/ABJ/CS/1016/2016

Glossary

Acquittal - A release, absolution, or discharge of an obligation or liability. In criminal law the finding of not guilty.

Adjudication - Giving or pronouncing a judgment or decree. Also the judgment given.

Administrative agencies - Agencies created by the legislative branch of government to administer laws pertaining to specific areas such as taxes, transportation, and labor.

Admiralty law - That body of law relating to ships, shipping, marine commerce and navigation, transportation of persons or property by sea, etc.

Advance directive - see living will.

Affidavit - A voluntary, written, or printed declaration of facts, confirmed by oath of the party making it before a person with authority to administer the oath.

Alimony - Also called maintenance or spousal support. In a divorce or separation, the money paid by one spouse to the other in order to fulfill the financial obligation that comes with marriage.

Alternative dispute resolution - Settling a dispute without a full, formal trial. Methods include mediation, conciliation, arbitration, and settlement, among others.

Amicus curiae - Latin for friend of the court. Refers to a party that is allowed to provide information (usually in the form of a legal brief) to a court even though the party is not directly involved in the case at hand.

Annulment - A legal decree that states that a marriage was never valid. Has the legal effect of wiping out a marriage as though it never existed.

Answer - In a civil case, the defendant's written response to the plaintiff's complaint. It must be filed within a specified period of time, and it either admits to or (more typically) denies the factual or legal basis for liability.

Appeal - A request to a supervisory court, usually composed of a panel of judges, to overturn the legal ruling of a lower court.

Appearance - The act of coming into court as a party to a suit either in person or through an attorney.

Appellate court - A court having jurisdiction to hear appeals and review a trial court's procedure.

Arbitration - When disputing parties participate in a process where they agree in advance to accept the decision of a mutually-selected arbitrator or panel of arbitrators which will hear both sides and make a decision. Bar-sponsored arbitration programs may also be a free or affordable way to work through a dispute with a lawyer.

Arbitrator - A private, disinterested person chosen by the parties in arbitration to hear evidence concerning the dispute and to make an award based on the evidence.

Arraignment - The initial appearance before a judge in a criminal case. At an arraignment, the charges against the defendant are read, a lawyer is appointed if the defendant cannot afford one, and the defendant's plea is entered. A plea can be guilty, not guilty, or where permitted nolo contendere. (See preliminary hearing.)

Articles of incorporation - A document that must be filed with a state in order to incorporate. Among the things it typically must include are the name and address of the corporation, its general purpose and the number and type of shares of stock to be issued.

Bankruptcy - A federal legal proceeding in which a debtor may be released from or discharged from debts, sometimes by paying a portion of each debt.

Bar - A term meaning lawyers or lawyer associations.

Brief - A written argument by counsel arguing a case, which contains a summary of the facts of the case, pertinent laws, and an argument of how the law applies to the fact situation.

Burden of proof - In a court case, the responsibility of proving a point (the burden of proof); which side must establish a point or points.

Canons of ethics - Standards of ethical conduct for attorneys.

Case law - (Also known as common law.) Law established by previous decisions of appellate courts.

Cause of action - The fact or facts which give a person a right to relief in court.

Certiorari - When a higher court agrees to review the decision of a lower court. If an appellate court grants a writ of certiorari, it agrees to take the appeal.

Civil law or civil case - A case that does not include a crime. Usually a case between private parties or businesses.

Class action - A lawsuit brought by one or more persons on behalf of a larger group.

Client Security/Protection Fund - A special fund to help compensate clients who are defrauded by dishonest lawyers, for example when a lawyer fails to turn over client's money won in a lawsuit, or other money held in trust for the client. This fund cannot help clients in fee disputes, or pay for losses due to lawyer malpractice.

Closing - In a real estate transaction, this is the final exchange in which the deed is delivered to the buyer, the title is transferred, and the agreed-on costs are paid.

Code of Professional Responsibility - The rules of conduct or ethics that govern the legal profession.

Common law - (Also known as case law.) Law established by previous decisions of appellate courts.

Compensatory damages - Money awarded to reimburse actual costs, such as medical bills and lost wages. Also awarded for things that are harder to measure, such as pain and suffering.

Complainant - The party who complains or sues; one who applies to the court for legal redress. (May also be called the plaintiff or petitioner.)

Complaint - 1) The legal document that usually begins a civil lawsuit. It states the facts and identifies the action the court is asked to take. 2) Formal written charge that a person has committed a criminal offense.

Conciliation - A form of alternative dispute resolution in which the parties bring their dispute to a neutral third party, who helps lower tensions, improve communications, and explore possible solutions. Conciliation is similar to mediation, but may be less formal.

Contempt of court - Willful disobedience of a judge's command or of an official court order. An action that interferes with a judge's ability to administer justice or that insults the dignity of the court. Disrespectful comments to the judge or a failure to heed a judge's orders could be considered contempt of court. A person found in contempt of court can face financial sanctions and, in some cases, jail time.

Contingency fee - Also called a contingent fee. A fee arrangement in which the lawyer is paid out of any damages that are awarded. Typically, the lawyer gets between one-fourth and one-third. If no damages are awarded, there is no fee (but the client still may have to pay filing fees, costs for the lawyer's investigation of the case, etc.).

Continuance - Postponement of a legal proceeding to a later date.

Contract - A legally enforceable agreement between two or more competent parties made either orally or in writing in which an offer is made and accepted, and each party benefits. The agreement can be formal, informal, written, oral or just plain understood. Some contracts are required to be in writing in order to be enforced by a court.

Copyright - A person's right to prevent others from copying works that he or she has written, authored or otherwise created.

Corporation - An independent entity created to conduct a business or other activity.

Counsel - A legal adviser; a term used to refer to lawyers in a case.

Counterclaim - A claim made by the defendant in a civil lawsuit against the plaintiff. In essence, a counter lawsuit within a lawsuit.

Court costs - The expenses of prosecuting or defending a lawsuit, other than the attorney fees. An amount of money may be awarded to the successful party (and may be recoverable from the losing party) as reimbursement for court costs.

Court reporter - A person who transcribes by shorthand or stenographically takes down testimony during court proceedings, a deposition, or other trial-related proceeding.

Crime - An act in violation of the penal laws of a state or the United States.

Criminal justice system - The network of courts and tribunals which deal with criminal law and its enforcement.

Damages - Money awarded by a court to a person injured by another person.

Debtor - A person or entity who owes a debt to another.

Deed - A written legal document that describes a piece of property and outlines its boundaries.

Default - Failure of the defendant to appear and answer the summons and complaint.

Default judgment - A judgment entered against a party who fails to appear in court or respond to the charges.

Defendant - The person defending or denying a suit.

Deposition - Testimony of a witness or a party taken under oath outside the courtroom, the transcript of which becomes a part of the court's file.

Disbarment - Form of discipline of a lawyer resulting in the loss (often permanently) of that lawyer's right to practice law.

Discipline Agency - A state agency responsible for investigating complaints about lawyers. If the lawyer is found to have violated an ethics or court rule, he or she will be reprimanded, fined, and perhaps suspended or disbarred (license to practice law revoked). Please note that lawyer discipline agencies cannot help clients recover fees paid to the lawyer, or make the lawyer pay for a loss the client has suffered because the lawyer made mistakes in handling a case.

Discovery - A process prior to a trial in which each side obtains facts and information about the case from the other side and from other sources.

Dismissal - The termination of a lawsuit by a court's finding that it should not be permitted to proceed.

Dismissal with prejudice - When a case is dismissed for good reason and the plaintiff is barred from bringing an action on the same claim.

Dismissal without prejudice - When a case is dismissed but the plaintiff is allowed to bring a new suit on the same claim.

Domicile - Where a person has his permanent home to which he intends to return.

Double jeopardy - Putting a person on trial more than once for the exact same crime. It is forbidden by the Fifth Amendment to the United States Constitution.

Due process - The concept that laws and legal proceedings must be fair. The Constitution guarantees that the government cannot take away a person's basic rights to life, liberty or property, without due process of law. Courts have issued numerous rulings about what this means in particular cases.

Equal Protection Clause - The portion of the Fourteenth Amendment to the U.S. Constitution that prohibits discrimination by state government institutions. The clause grants all people equal protection of the laws, which means that the states must apply the law equally and cannot give preference to one person or class of persons over another.

Evidence - Information presented in testimony or in documents that is used by the fact finder (judge or jury) to decide the case for one side or the other.

Expert witness - A witness with a specialized knowledge of a subject who is allowed to discuss an event in court even though he or she was not present. For example, an arson expert could testify about the probable cause of a suspicious fire.

Expungement - The process by which the record of criminal conviction is destroyed or sealed.

Extradition - The surrender of an accused criminal by one state to the jurisdiction of another.

Felony - A serious criminal offense. Usually any offense punishable by death or imprisonment for a term exceeding one year.

Fiduciary - A person or institution who manages money or property for another. For example, an executor of an estate, a trustee, etc.

Fiduciary Duty - An obligation to act in the best interest of another party. For instance, a corporation's board member has a fiduciary duty to the shareholders, a trustee has a fiduciary duty to the trust's beneficiaries.

Filing Fee - The fee required for filing various documents.

Grand Jury - A group of citizens convened in a criminal case to consider the prosecutor's evidence and determine whether probable cause exists to prosecute a suspect for a felony.

Guardian - A person appointed by will or by law to assume responsibility for incompetent adults or minor children. If a parent dies, this will usually be the other parent. If both die, it probably will be a close relative.

Guardian ad litem - Latin for guardian at law. The person appointed by the court to look out for the best interests of a child or other person not able to look out for themselves during the course of legal proceedings.

Hearing - A formal proceeding (generally less formal than a trial) with definite issues of law or of fact to be heard. Hearings are used by courts and also by legislative and administrative agencies.

Indigent - Needy or impoverished. A defendant in a criminal case who can demonstrate his or her indigence to the court may be assigned a court-appointed attorney at public expense.

Initial appearance - When a defendant in a criminal case comes before a judge shortly after an arrest to determine whether or not there is probable cause for the arrest.

Injunction - A court order which forbids or requires a party to the case to do some act.

Interrogatories - A set or series of written questions sent to a party, witness, or other person having information or interest in a case; used in the discovery phase of a case.

Joint and several liability - A legal concept that says that each of the parties who are responsible for an injury are liable for the total amount of damages awarded in a lawsuit if the other parties responsible cannot pay.

Judgment - Decision of a court.

Jurisdiction - The power or authority of a court to hear and try a case; the geographic area in which a court has power or the types of cases it has power to hear.

Jury - A certain number of men and women selected according to law and sworn to determine the facts in a case after hearing the evidence.

No listings at this time.

Legal aid - Legal services that may be available to persons or organizations unable to afford such services in civil matters. There is no right to legal aid in most types of civil matters.

Living will - Also known as a medical directive or advance directive. A written document that states a person's wishes regarding life-support or other medical treatment in certain circumstances, usually when death is imminent.

Magistrate - (See U.S. Magistrate Judge.) Judicial officer exercising some of the functions of a judge. It also refers in a general way to a judge.

Maintenance - In a divorce or separation, the money paid by one spouse to the other in order to fulfill the financial obligation that comes with marriage. Also called alimony.

Mediation - A private, informal way to resolve a dispute. A mediator is a neutral third person who tries to aid disputing parties in reaching a mutually agreeable solution to their differences. Bar sponsored client-lawyer mediation programs can be a good first step if efforts to work the problem out with the lawyer have not succeeded.

Misdemeanor - A criminal offense lesser than a felony and generally punishable by fine or by imprisonment other than in a penitentiary or for less than one year.

Mistrial - A fundamental error in a trial. When a mistrial is declared, the trial must start again with the selection of a new jury.

Moot - A moot case or a moot point is one not subject to a judicial determination because it involves an abstract question or a pretended controversy that has not yet actually arisen or has already passed. Mootness usually refers to a court's refusal to consider a case because the issue involved has been resolved prior to the court's decision, leaving nothing that would be affected by the court's decision.

Motion - A request made to a court or judge which seeks a ruling or order in favor of the applicant.

Motion to dismiss - In a civil case, a request to a judge by the defendant, asserting that even if all the allegations are true, the plaintiff is not entitled to any legal relief and thus the case should be dismissed.

Negligence - Failure to use care which a reasonable and prudent person would use under similar circumstances.

No-fault divorce - A divorce in which it doesn't matter who did what to whom that caused the marriage to break down; all that matters is that there is no reasonable prospect of reconciliation.

Notary Public - A person who has been authorized by a state to administer oaths or certify documents.

Oath - A solemn pledge made under a sense of responsibility.

Opinion - A judge's written explanation of a decision of the court or of a majority of judges. A dissenting opinion disagrees with the majority opinion because of the reasoning and/or the principles of law on which the decision is based. A concurring opinion agrees with the decision of the court but offers further comment. (A per curiam opinion is an unsigned opinion of the court.)

Paralegal - A person, usually with special training but who has not earned a law degree, who works under the supervision of a lawyer. Also called a legal assistant.

Petitioner - In some states or types of cases, the person filing a lawsuit or action in a court. Also, the person who appeals the judgment of a lower court.

Plaintiff - A person who brings a lawsuit or action; the party who complains or sues in a civil action.

Plea - The defendant's statement that he or she is guilty or not guilty. The defendant's answer to the charges made in the indictment or information. A plea can be guilty, not guilty, or where permitted nolo contendere.

Pleadings - The written statements of fact and law filed by the parties to a lawsuit.

Preliminary hearing - Also, called a preliminary examination. Legal proceeding used in some states in which a prosecutor presents evidence to a judge in an attempt to show that there is probable cause that a person committed a crime. If the judge is convinced probable cause exists to charge the person, then the prosecution proceeds to the next phase. If not, the charges are dropped.

Pro Bono - Work done by a lawyer without compensation, for the public good: a lawyer's pro bono work.

Pro Se - (pronounced pro say) Latin phrase that means for himself. A person who represents himself in court alone without the help of a lawyer is said to appear pro se.

Probate - Court proceeding by which a will is proved valid or invalid. Term used to mean all proceedings pertaining to the administration of estates such as the process by which assets are gathered; applied to pay debts, taxes, and expenses of administration; and distributed to those designated as beneficiaries in the will.

Probate court - The court with authority to supervise estate administration.

Prosecutor - A trial lawyer representing the government in a criminal case and the interests of the state in civil matters. In criminal cases, the prosecutor has the responsibility of deciding who and when to prosecute.

Public defender - Government lawyer who provides free legal defense services to a poor person accused of a crime.

Reasonable doubt - Generally in a criminal case, an accused person is entitled to acquittal if, in the minds of the jury, his or her guilt has not been proved beyond a reasonable doubt.

Reply - The response by a party to charges raised in a pleading by the other party.

Respondent - The person against whom an appeal is taken.

Retainer - A term sometimes used to describe the fee which the client pays when he or she retains the attorney to act for them.

Rules of evidence - Standards governing whether evidence in a civil or criminal case is admissible.

Self help - A term sometimes used to describe when a person handles a legal matter on their own, without using a lawyer.

Standard of proof - In a court case, indicates the degree to which the point must be proven. In a civil case, the plaintiff must usually establish his or her case by a "preponderance of evidence" or "clear and convincing evidence."

Standing - The legal right to bring a lawsuit. Only a person with something at stake has standing to bring a lawsuit.

Statute of limitations - A statute which limits the right of a plaintiff to file an action unless it is done within a specified time period after the occurrence which gives rise to the right to sue.

Stipulation - An agreement between the parties involved in a suit, agreeing that a certain fact or law will be assumed to be true or relevant.

Subpoena - An order compelling a person to appear to testify or produce documents.

Summary judgment - When a court gives its judgment that there is no dispute as to the facts of the case and one party is entitled to a judgment as a matter of law.

Summons - A legal document used to begin a civil case or to tell a person they must appear in court or respond to a lawsuit.

Temporary restraining order - An emergency but temporary order by a court used when immediate or irreparable damages or loss might result.

Testimony - The evidence given by a witness under oath. It does not include evidence from documents and other physical evidence.

Tort - When a person or entity caused a civil wrong or injury.

Trust - A legal device used to manage real or personal property, established by one person for the benefit of another.

Trustee - The person or institution that manages the property put in trust.

Venue - Authority of a court to hear a matter based on geographical location.

Verdict - A conclusion, as to fact or law, that forms the basis for the court's judgment.

Will - A legal declaration that disposes of a person's property when that person dies.

Witness - A person who testifies in court and swears to give truthful evidence about what he has seen, heard, or otherwise observed.

Words and Phrases Legally Defined - A set of books in dictionary form which lists judicial determinations of a word or phrase.

Worker's compensation - 1) A state agency which handles claims of workers injured on their jobs. 2) A benefit paid to an employee who suffers a work-related injury or illness.

Writ - A judicial order directing a person to do something.

Writ of certiorari - An order issued by the Supreme Court directing the lower court to transmit records for a case for which it will hear on appeal. (See certiorari in Foreign Words Glossary.)

Writ of execution - An order of the court evidencing debt of one party to another and commanding the court officer to take property in satisfaction of the debt.

Writ of garnishment - An order of the court whereby property, money, or credits in the possession of another person may be seized and applied to pay a debtor's debt. It is used as an incident to or auxiliary of a judgment rendered in a principal action.

Wrongful discharge - When an employee is fired for reasons that are not legitimate, typically either because they are unlawful or because they violate the terms of an employment contract.